SIAC
Singapore International Arbitration Centre

Arbitration Rules of the
Singapore International Arbitration Centre

SIAC Rules

7th Edition, 1 January 2025

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Arbitration Rules of the Singapore International Arbitration Centre

SIAC Rules

7th Edition, 1 January 2025

SECTION I. INTRODUCTORY RULES

1. Scope of Application

1.1 Where the parties have agreed by contract or otherwise to refer their disputes to SIAC for arbitration or to arbitration in accordance with the SIAC Rules, the parties shall be deemed to have agreed that the arbitration shall be conducted pursuant to and administered by SIAC in accordance with these Rules.

1.2 These Rules shall apply to domestic and international arbitrations commenced under a contract, treaty, or other instrument.

1.3 These Rules shall include the Schedules attached thereto which shall form part of the Rules and shall be read together as appropriate.

1.4 The Registrar may from time to time issue *Practice Notes* as guidance to supplement and implement these Rules.

1.5 These Rules shall come into force on 1 January 2025 and, unless otherwise agreed by the parties, shall apply to any arbitration which is commenced on or after that date.

1.6 These Rules shall govern the conduct and administration of the arbitration, except that, where any such rule is in conflict with any provision of law applicable to the arbitration from which the parties cannot derogate, that provision shall prevail.

2. Definitions

2.1 Terms used in these Rules shall be defined as follows:

additional party	A party who is the subject of an application for joinder in accordance with Rule 18
amount in dispute	The aggregate of any claim, counterclaim, cross-claim or set-off filed in the arbitration which quantum is determined by the Registrar for the purpose of SIAC's administration of the arbitration
award	Includes an interim, interlocutory, consent, partial, final or additional award and an award of an Emergency Arbitrator
Challenge Filing Fee	The applicable fee to file a Notice of Challenge in accordance with Rule 27.1 and the Schedule of Fees
Claim Filing Fee	The applicable fee to file a Notice of Arbitration in accordance with Rule 6.3(i) and the Schedule of Fees
Claimant	A party initiating recourse to arbitration under these Rules and which may include one or more claimants
Code of Ethics	SIAC's *Code of Ethics for Arbitrators* in force at the date of commencement of the arbitration
Committee of the SIAC Court	A Committee consisting of not fewer than two members of the SIAC Court

Direct Economic Interest	Means an interest in the arbitration proceedings resulting from the provision by a third-party funder to (i) a party in the arbitration proceedings, (ii) an affiliate of that party or (iii) a law firm representing that party, of funding for, or indemnity against the award to be rendered in the arbitration proceedings, either individually or as part of a specific range of cases where such provision of support or financing is provided in exchange for either remuneration or reimbursement that is wholly or partially dependent on the outcome of the arbitration proceedings
EA Filing Fee	The applicable fee to file an application for the appointment of an Emergency Arbitrator in accordance with Rule 12.1, Schedule 1, and the Schedule of Fees
Emergency Arbitrator or EA	An Emergency Arbitrator appointed in accordance with Rule 12.1 and paragraph 7 or paragraph 26 of Schedule 1
Filing Fees	Include the Challenge Filing Fee, Claim Filing Fee, EA Filing Fee, Joinder Filing Fee, and any other applicable filing fee in accordance with the Schedule of Fees
Joinder Filing Fee	The applicable fee to file an application for joinder in accordance with Rule 18 and the Schedule of Fees
Notice	A Notice of Arbitration, including all accompanying documents, filed in accordance with Rule 6
party or parties	Include the Claimant, Respondent, and any Additional Party

Practice Notes	The Practice Notes published by the Registrar as guidance to supplement and implement these Rules, in force at the date of commencement of the arbitration
President	The President of the SIAC Court
Registrar	The Registrar of the SIAC Court and includes any Deputy Registrar
Respondent	A party against whom a Claimant seeks recourse to arbitration under these Rules and includes one or more respondents
Response	A Response to the Notice, including all accompanying documents, filed in accordance with Rule 7
Rules	Arbitration Rules of the Singapore International Arbitration Centre (7th Edition, 1 January 2025)
Schedule of Fees	The SIAC Schedule of Fees in force at the date of commencement of the arbitration
Schedules	Schedules 1, 2, and 3 of these Rules and any additional schedules as may be published by SIAC from time to time
seat of the arbitration	The seat, meaning the legal place, of the arbitration
SIAC	The Singapore International Arbitration Centre
SIAC Board	The Board of Directors of SIAC
SIAC Court	The Court of Arbitration of SIAC
SIAC Gateway	The case management system hosted by SIAC and accessible at the website of SIAC
SIAC Secretariat	The case management and administration team of SIAC

SIAC-SIMC AMA Protocol	The SIAC-SIMC Arbitration-Mediation-Arbitration Protocol
SIMC	The Singapore International Mediation Centre
Tribunal	Refers to a panel of one or more arbitrators appointed in the arbitration
third-party funder	Refers to any person, either legal or natural, who is not a party to the arbitration proceedings but who has a Direct Economic Interest in the outcome of the arbitration proceedings
third-party funding agreement	Means an agreement between a third-party funder and a party, an affiliate of that party, or a law firm representing that party
Vice President	One or more Vice Presidents of the SIAC Court
written communications	Include notices, and any notification, communication or proposal, data messages, electronic communications, applications, pleadings, witness statements, expert reports, decisions, rulings, orders, awards, and other correspondence and documents that are produced, submitted, or exchanged in the arbitration

3. Interpretation

3.1 Rule headings are for reference only and are not to be used for the purpose of interpretation.

3.2 Any singular noun shall be understood to refer to the plural in appropriate circumstances and *vice versa*.

3.3 Save as may relate to powers exercisable by the Tribunal, the Registrar shall have the power to interpret any provision under these Rules.

3.4 Prior to the constitution of the Tribunal or the appointment of an Emergency Arbitrator, the Registrar shall determine the acceptance and ordering of any procedural applications.

3.5 In all matters not expressly provided for in these Rules, the SIAC Court, the President, the Vice President, the Registrar, the SIAC Secretariat, and any Emergency Arbitrator and Tribunal shall act in the spirit of these Rules and shall endeavour to ensure:

(a) the fairness of the proceedings;

(b) the expeditious and cost-effective conduct of the arbitration proportionate to the complexity of the claim and the amount in dispute; and

(c) the enforceability of any award.

3.6 The parties shall attempt to agree on any procedural matters not expressly provided for in these Rules, taking into account the principles set out at Rule 3.5(a) - Rule 3.5(c), before seeking a decision from the SIAC Secretariat or the Tribunal on such matters.

3.7 In the event of any discrepancy or inconsistency between the English version of these Rules and any other languages in which these Rules are published, the English version shall prevail.

4. Communications

4.1 Unless otherwise required under these Rules, the parties shall deliver all written communications to all parties, the Tribunal, and the SIAC Secretariat in accordance with Rule 4.3 or Rule 4.4. Such written communications may be delivered by any means of communication that provides or allows for a record of transmission, including by hand, registered mail or courier service, email, or any other means which provides a record of the attempt to deliver it.

4.2 Upon notification of the commencement of the arbitration and at any stage of the arbitration thereafter, after considering the views of the parties and the Tribunal, the Registrar may direct the parties to upload all written communications to SIAC Gateway.

4.3 Any written communication shall be delivered using the contact details designated for the purpose of the arbitration by the parties or their representatives, the Tribunal, or the SIAC Secretariat, or by upload to SIAC Gateway upon the direction of the Registrar under Rule 4.2.

4.4 In the absence of such designation or direction under Rule 4.3, any written communications shall be deemed to be received if they are delivered:

(a) to the addressee personally or to its authorised representative;

(b) to the addressee's place of business, habitual residence, or mailing address; or

(c) according to the practice of the parties in prior dealings.

If, after making a reasonable inquiry, delivery cannot be effected under (a) – (c) above, written communications shall be deemed to be received if they are delivered to the addressee's last-known place of business, habitual residence, or mailing address.

4.5 Any application under these Rules shall be delivered to all other parties, the Tribunal, and the SIAC Secretariat with confirmation of the date and mode of delivery.

4.6 Any written communication to the parties shall be deemed to have been received by the parties on the day that it was delivered in accordance with Rule 4.3 or Rule 4.4.

5. Periods of Time

5.1 For the purpose of calculating any period of time under these Rules, such period shall commence from the day following the receipt of a written communication or the deemed receipt of such written communication. Unless the Registrar or the Tribunal determines otherwise, any period of time under these Rules is to be calculated with reference to Singapore Standard Time (GMT +8).

5.2 Any statutory holidays or non-business days at the place of receipt shall be included in the calculation of any period of time under these Rules. If the last day of any period of time under these Rules is a statutory holiday or non-business day at the place of receipt, the period of time shall be extended until the first business day at the place of receipt which follows.

5.3 Except as otherwise provided in these Rules, the Registrar may at any time extend or abridge any period of time under these Rules.

SECTION II. COMMENCEMENT OF ARBITRATION

6. Notice of Arbitration

6.1 The Claimant shall deliver a Notice of Arbitration to the Registrar and the Respondent. Subject to compliance with Rule 4 of these Rules, the Claimant may file the Notice online with the SIAC Secretariat through SIAC Gateway.

6.2 The date on which the Notice is received by the Registrar shall be deemed to be the date of commencement of the arbitration. The SIAC Secretariat shall notify the parties of the commencement of the arbitration.

6.3 The Notice shall include the following:

(a) a demand that the dispute be referred to arbitration;

(b) the identity and contact details of the parties to the arbitration and their representatives, if any;

(c) the date and mode of delivery of the Notice to the Respondent;

(d) a copy or description of the arbitration agreement invoked;

(e) a copy or description of the contract, treaty or other instrument out of or in connection with which the dispute arises;

(f) a statement describing the nature and circumstances of the dispute, including the relief sought and an initial estimate of the claim amount;

(g) any comment as to the applicable rules of law, seat of the arbitration, language of the arbitration, number of arbitrators, and procedure for the constitution of the Tribunal;

(h) a statement on the existence of any third-party funding agreement and the identity and contact details of the third-party funder; and

(i) payment of the Claim Filing Fee.

6.4 The Notice may include:

(a) any comment on the adoption of amicable dispute resolution methods such as mediation under the SIAC-SIMC AMA Protocol for the settlement of all or part of the dispute; and

(b) the Statement of Claim in accordance with Rule 33.2.

6.5 The Registrar shall determine whether the Notice complies or substantially complies with the requirements under Rule 6.3.

6.6 If the Registrar determines that the Notice does not comply or substantially comply with any of the requirements under Rule 6.3, or the Claim Filing Fee is not paid upon the filing of the Notice, the Registrar may set a period of time for the Claimant to remedy the deficiency in the Notice or to make payment of the Claim Filing Fee. If the Claimant fails to do so within the period of time set by the Registrar, the Registrar may terminate the arbitration without prejudice to the Claimant filing a Notice in another proceeding.

7. Response to the Notice of Arbitration

7.1 The Respondent shall deliver a Response to the Notice to the Registrar and the Claimant within 14 days from the date of commencement of the arbitration or the date of the Respondent's receipt of the Notice, whichever is later. The Response shall include the following:

(a) the identity and contact details of the Respondent and its representatives;

(b) the date and mode of delivery of the Response to the Claimant;

(c) a brief statement describing the nature and circumstances of the dispute and a confirmation or denial of all or part of the claims;

(d) any objection to jurisdiction under Rule 8.1 and/or Rule 31.2;

(e) a statement describing the nature and circumstances of any counterclaim, cross-claim, or set-off, including the relief claimed and an initial estimate of the claim amount;

(f) any comment as to the applicable rules of law, seat of the arbitration, language of the arbitration, number of arbitrators, and procedure for the constitution of the Tribunal; and

(g) a statement on the existence of any third-party funding agreement and the identity and contact details of the third-party funder.

7.2 If the Claimant has filed a Statement of Claim with the Notice pursuant to Rule 6.4, the Respondent may, but is not required to, include a Statement of Defence and Statement of Counterclaim in accordance with Rule 33.3.

7.3 The Response may include any comment on the adoption of amicable dispute resolution methods such as mediation under the SIAC-SIMC AMA Protocol for the settlement of all or part of the dispute.

7.4 The failure of the Respondent to submit its Response will not prevent the SIAC Court, the President, the Vice President, the Registrar, or the SIAC Secretariat from making any decision under these Rules and proceeding with the administration of the arbitration.

8. *Prima Facie* Jurisdictional Objection

8.1 If the Respondent fails to submit a Response, or any party objects to the existence, validity, or applicability of the arbitration agreement, the arbitration shall proceed and any question of jurisdiction shall be determined by the Tribunal unless the Registrar determines, prior to the constitution of the Tribunal, that the matter shall be referred to the SIAC Court for a *prima facie* determination under Rule 8.2.

8.2 Where the Registrar refers a matter to the SIAC Court under Rule 8.1, the SIAC Court shall determine, on a *prima facie* basis, whether and to what extent the arbitration shall proceed. Any decision by the Registrar or the SIAC Court that the arbitration shall proceed is without prejudice to the power of the Tribunal to rule on its own jurisdiction.

8.3 In the event that the SIAC Court determines that the arbitration shall not proceed, in whole or in part, the Registrar shall terminate the arbitration in accordance with the decision of the SIAC Court.

9. Amendments to the Notice or Response

9.1 Prior to the constitution of the Tribunal, a party may amend, modify, or supplement the Notice, the Response, or any procedural application under these Rules with the leave of the Registrar.

10. Representation

10.1 A party may be self-represented or represented or assisted by any person of its choice, including legal counsel, advocates, agents, or any other authorised representatives, subject to any applicable law.

10.2 Prior to the constitution of the Tribunal, the Registrar may direct any party representative to provide proof of authority in a form to be determined by the Registrar. Any question as to the validity of this proof of authority shall ultimately be determined by the Tribunal.

10.3 Prior to the constitution of the Tribunal, any change or addition by a party to its representatives must be communicated to the Registrar and the other parties.

10.4 After the constitution of the Tribunal, the Tribunal may direct any party representative to provide proof of authority in a form to be determined by the Tribunal.

10.5 After the constitution of the Tribunal, any change by a party to its representatives must be first proposed to the Tribunal. The Tribunal may, after considering the views of the parties, allow the proposed change of representatives. The Tribunal may withhold approval of any proposed change to a party's representatives where such change could compromise the composition of the Tribunal or the integrity of the proceedings. In considering such a proposal, the Tribunal shall take into account, *inter alia*, the general principle that a party may be represented by a representative of its choice, the stage which the arbitration has reached, and the efficiency likely to result from maintaining the composition of the Tribunal.

11. Administrative Conference

11.1 Prior to the constitution of the Tribunal, the Registrar may, at his or her discretion, conduct administrative conferences with the parties to discuss any procedural or administrative directions to be made by the Registrar under these Rules. The administrative conference may be conducted by videoconference, teleconference, or any other form of electronic communication.

SECTION III. PROCEDURAL APPLICATIONS

12. Emergency Arbitrator

12.1 Prior to the constitution of the Tribunal, a party may apply for the appointment of an Emergency Arbitrator in accordance with the procedure set out in Schedule 1.

13. Streamlined Procedure

13.1 The arbitration shall be conducted in accordance with the Streamlined Procedure set out in Schedule 2 where:

(a) the parties have agreed to the application of the Streamlined Procedure prior to the constitution of the Tribunal; or

(b) the amount in dispute in the arbitration does not exceed the equivalent amount of S$1,000,000 prior to the constitution of the Tribunal, unless the President determines upon application of a party that the Streamlined Procedure shall not apply to the arbitration.

13.2 The SIAC Secretariat shall inform the parties where the arbitration is to be conducted in accordance with the Streamlined Procedure pursuant to Rule 13.1.

13.3 The parties may agree to exclude the application of this Rule 13, by agreement in writing.

14. Expedited Procedure

14.1 The arbitration shall be conducted in accordance with the Expedited Procedure set out in Schedule 3 where the parties have agreed to the application of the Expedited Procedure prior to the constitution of the Tribunal. Unless the parties have agreed to a previous edition of the SIAC Rules, any agreement by the parties to the application of the Expedited Procedure under a previous rule reference shall be deemed to be an agreement for the application of the Expedited Procedure for the purpose of this rule.

14.2 At the time of filing the Notice or the Response, or at any time prior to the constitution of the Tribunal, a party may file an application with the Registrar for the arbitration to be conducted in accordance with the Expedited Procedure where:

(a) at the time of the application, the amount in dispute does not exceed the equivalent amount of S$10,000,000 but exceeds the equivalent amount of S$1,000,000;

(b) at the time of the application, the amount in dispute does not exceed the equivalent amount of S$1,000,000 and the President has determined under Rule 13.1(b) that the Streamlined Procedure shall not apply to the arbitration; or

(c) the circumstances of the case warrant the application of the Expedited Procedure.

14.3 The President shall, after considering the views of the parties, determine whether to grant an application under Rule 14.2. Where the President grants the application, the Expedited Procedure set out in Schedule 3 shall apply.

14.4 The parties may agree to exclude the application of this Rule 14, by agreement in writing.

15. Multiple Contracts

15.1 Where disputes arise out of or in connection with more than one arbitration agreement, the Claimant shall:

(a) file a separate Notice in respect of each arbitration agreement invoked;

(b) file a separate Notice in respect of each arbitration agreement invoked and concurrently submit an application to consolidate the arbitrations in accordance with Rule 16.1; or

(c) file a single Notice in respect of all the arbitration agreements invoked and the Notice shall be deemed to be an application to consolidate all such arbitrations in accordance with Rule 16.1. In addition to the requirements under Rule 6.3, the Notice shall include a statement identifying the relevant contracts and the claims arising out of or in connection with each arbitration agreement invoked.

15.2 Subject to compliance with Rule 6.3, the Claimant shall be deemed to have commenced multiple arbitrations, one in respect of each arbitration agreement invoked, and the Registrar shall assign a separate case reference for each arbitration agreement invoked.

15.3 Where the Claimant has filed the Notices pursuant to Rule 15.1(b), the Registrar shall accept payment of a single Claim Filing Fee for all the arbitrations sought to be consolidated. If the SIAC Court rejects the application for consolidation under Rule 16.4, in whole or in part, the Claimant shall be required to make payment of the Claim Filing Fee in respect of each case reference that was not consolidated.

15.4 Where the Claimant has filed a single Notice pursuant to Rule 15.1(c), the Registrar shall accept payment of a single Claim Filing Fee for all the arbitrations sought to be consolidated. If the SIAC Court rejects the application for consolidation under Rule 16.4, in whole or in part, the Claimant shall file a Notice in accordance with Rule 6 and make payment of the Claim Filing Fee in respect of each case reference that was not consolidated.

16. Consolidation

16.1 Prior to the constitution of any Tribunal in the arbitrations sought to be consolidated, a party may file an application with the Registrar to consolidate two or more arbitrations filed under Rule 15.1, or otherwise pending under these Rules, into a single arbitration where:

(a) all parties have agreed to the consolidation;

(b) all the claims, counterclaims, and cross-claims in the arbitrations are made under the same arbitration agreement; or

(c) the arbitration agreements are compatible, and: (i) the disputes arise out of or in connection with the same legal relationship(s); (ii) the disputes arise out of or in connection with contracts consisting of a principal contract and its ancillary contract(s); or (iii) the disputes arise out of or in connection with the same transaction or series of transactions.

16.2 An application for consolidation under Rule 16.1 shall include:

(a) the date and mode of delivery of the application on all parties and any appointed arbitrators;

(b) the case reference numbers of the arbitrations sought to be consolidated, where available;

(c) the identity and contact details of the parties and their representatives, and any arbitrators who have been nominated or appointed in the arbitrations sought to be consolidated;

(d) the information specified in Rule 6.3(d) and Rule 6.3(e);

(e) a statement on the existence of any third-party funding agreement in respect of the arbitrations sought to be consolidated and the identity and contact details of the third-party funder; and

(f) a statement of the facts and legal basis supporting the application.

16.3 The Registrar may order a stay of any of the arbitrations sought to be consolidated pending the decision of the SIAC Court on the application for consolidation.

16.4 The SIAC Court shall, after considering the views of the parties, decide whether to grant, in whole or in part, an application for consolidation under Rule 16.1. Where an application for consolidation is made under Rule 16.1(a) by agreement of all parties, the President shall decide the application and the decision of the President shall be deemed to be a decision of the SIAC Court.

16.5 The SIAC Court's decision to grant an application for consolidation under Rule 16.4 is without prejudice to the Tribunal's power to subsequently decide any question as to its jurisdiction arising from such decision. The SIAC Court's decision to reject an application for consolidation under Rule 16.4 is without prejudice to any party's right to apply to the Tribunal for consolidation pursuant to Rule 16.8. Any arbitrations that are not consolidated shall continue as separate arbitrations.

16.6 Where the SIAC Court decides to consolidate two or more arbitrations under Rule 16.4, the arbitrations shall be consolidated into the arbitration that is deemed by the Registrar to have commenced first, unless otherwise agreed by all parties or the SIAC Court decides otherwise. For the purpose of the administration of the consolidated arbitration, the SIAC Court will designate the parties in the consolidated arbitration as claimant(s) and respondent(s).

16.7 Where an application for consolidation is granted under Rule 16.4, the President may, after considering the views of the parties, revoke the appointment of any arbitrators who were appointed prior to the SIAC Court's decision on consolidation. Unless the Registrar determines otherwise, the appointment provisions under these Rules shall apply as appropriate, and any timelines thereunder shall run from the date of receipt of the SIAC Court's decision under Rule 16.4.

16.8 After the constitution of a Tribunal in any of the arbitrations sought to be consolidated, a party may apply to the Tribunal to consolidate two or more arbitrations pending under these Rules into a single arbitration where:

(a) all parties have agreed to the consolidation;

(b) all the claims, counterclaims, and cross-claims in the arbitrations are made under the same arbitration agreement, and the same Tribunal has been constituted in each of the arbitrations or no Tribunal has been constituted in the other arbitration(s); or

(c) the arbitration agreements are compatible, the same Tribunal has been constituted in each of the arbitrations or no Tribunal has been constituted in the other arbitration(s), and: (i) the disputes arise out of or in connection with the same legal relationship(s); (ii) the disputes arise out of or in connection with contracts consisting of a principal contract and its ancillary contract(s); or (iii) the disputes arise out of or in connection with the same transaction or series of transactions.

16.9 Subject to any specific directions of the Tribunal, the provisions of Rule 16.2 shall apply, *mutatis mutandis*, to an application for consolidation under Rule 16.8.

16.10 The Tribunal shall, after giving all parties the opportunity to be heard, decide whether to grant, in whole or in part, an application for consolidation under Rule 16.8. The Tribunal's decision to grant an application for consolidation under this Rule 16.10 is without prejudice to the Tribunal's power to subsequently decide any question as to its jurisdiction arising from such decision. Any arbitrations that are not consolidated shall continue as separate arbitrations.

16.11 Where an application for consolidation is granted under Rule 16.10, the President may, after considering the views of the parties, revoke the appointment of any arbitrators who were appointed prior to the Tribunal's decision on consolidation.

16.12 The President's decision to revoke the appointment of any arbitrator under Rule 16.7 or Rule 16.11 is without prejudice to the validity of any act done or any decision, ruling, order, or award made by the arbitrator before his or her appointment was revoked.

16.13 Where an application for consolidation is granted under Rule 16.4 or Rule 16.10, any party which did not have the opportunity to nominate an arbitrator or otherwise participate in the constitution of the Tribunal shall be deemed to have waived any such right, without prejudice to the right of such party to challenge an arbitrator pursuant to Rule 26.

17. Coordinated Proceedings

17.1 Where the same Tribunal is constituted in two or more arbitrations, and a common question of law or fact arises out of or in connection with all the arbitrations, a party to the arbitrations may apply to the Tribunal for the arbitrations to be coordinated such that:

(a) the arbitrations shall be conducted concurrently or sequentially;

(b) the arbitrations shall be heard together and any procedural aspects shall be aligned; or

(c) any of the arbitrations shall be suspended pending a determination in any of the other arbitrations.

17.2 The Tribunal shall determine the application under Rule 17.1 after giving all parties to the arbitrations an opportunity to be heard and having regard to the obligations of confidentiality under Rule 59.

17.3 Unless otherwise agreed by the parties, any coordinated arbitrations shall remain separate proceedings, and the Tribunal shall issue separate decisions, rulings, orders, and awards in each arbitration.

18. Joinder

18.1 At the time of filing the Notice or the Response, or at any time prior to the constitution of the Tribunal, a party or non-party to the arbitration may file an application with the Registrar for the joinder of one or more additional parties to an arbitration pending under these Rules as a claimant or a respondent (each, an "additional party") where:

(a) all parties, including the additional party, have agreed to the joinder of the additional party; or

(b) the additional party is *prima facie* bound by the arbitration agreement.

18.2 An application for joinder under Rule 18.1 shall include:

(a) the date and mode of delivery of the application to all parties, including the additional party;

(b) the case reference number of the pending arbitration;

(c) the identity and contact details of all parties, including the additional party, and their representatives;

(d) submissions on whether the additional party shall be designated as a claimant or a respondent;

(e) the information specified in Rule 6.3(d) and Rule 6.3(e);

(f) a statement on the existence of a third-party funding agreement in respect of any party including the additional party, and the identity and contact details of the third-party funder;

(g) a statement of the facts and legal basis supporting the application; and

(h) payment of the Joinder Filing Fee.

18.3 The Registrar shall determine whether the application for joinder complies or substantially complies with the requirements under Rule 18.2. The SIAC Secretariat shall notify all parties, including the additional party, when the application for joinder is complete.

18.4 If the Registrar determines that the application for joinder does not comply or substantially comply with any of the requirements under Rule 18.2, or if the Joinder Filing Fee is not paid upon the filing of the application, the Registrar may set a period of time for the deficiency in the application to be remedied. If the applicant fails to do so within the period of time set by the Registrar, the Registrar may deem the application to be withdrawn on a without prejudice basis.

18.5 The SIAC Court shall, after considering the views of all parties, including the additional party, decide whether to grant, in whole or in part, an application for joinder under Rule 18.1. Where an application for joinder is made under Rule 18.1(a) by agreement of all parties (including the additional party), the President shall decide the application and the decision of the President shall be deemed to be a decision of the SIAC Court.

18.6 The SIAC Court's decision to grant an application for joinder under Rule 18.5 is without prejudice to the Tribunal's power to subsequently decide any question as to its jurisdiction arising from such decision. The SIAC Court's decision to reject an application for joinder under Rule 18.5 is without prejudice to any party's or non-party's right to apply to the Tribunal for joinder in accordance with Rule 18.10.

18.7 Where an application for joinder is granted under Rule 18.5, the date of receipt by the Registrar of the complete joinder application shall be deemed to be the date of commencement of the arbitration in respect of the additional party.

18.8 Where an application for joinder is granted under Rule 18.5, the President may revoke the appointment of any arbitrators who were appointed prior to the SIAC Court's decision on joinder. Unless the Registrar determines otherwise, the appointment provisions under these Rules shall apply as appropriate, and any timelines thereunder shall run from the date of receipt of the SIAC Court's decision under Rule 18.5.

18.9 The President's decision to revoke the appointment of any arbitrator under Rule 18.8 is without prejudice to the validity of any act done or any decision, ruling, order, or award made by the arbitrator before his or her appointment was revoked.

18.10 After the constitution of the Tribunal, a party or non-party to the arbitration may apply to the Tribunal for the joinder of one or more additional parties to an arbitration pending under these Rules as a claimant or a respondent (each, an "additional party") where:

(a) all parties, including the additional party, have agreed to the joinder of the additional party; or

(b) the additional party is *prima facie* bound by the arbitration agreement.

18.11 Subject to any specific directions of the Tribunal, the provisions of Rule 18.2 shall apply, *mutatis mutandis*, to an application for joinder under Rule 18.10. Where appropriate, an application to the Tribunal under Rule 18.10 may be filed with the Registrar who shall deliver the application to the Tribunal.

18.12 The Tribunal shall, after giving all parties, including the additional party, the opportunity to be heard, decide whether to grant, in whole or in part, an application for joinder under Rule 18.10.

18.13 The Tribunal's decision to grant an application for joinder under Rule 18.12 is without prejudice to the Tribunal's power to subsequently decide any question as to its jurisdiction arising from such decision.

18.14 Where an application for joinder is granted under Rule 18.12, the date of receipt by the Registrar or the Tribunal, as the case may be, of the complete joinder application shall be deemed to be the date of commencement of the arbitration in respect of the additional party.

18.15 Where an application for joinder is granted, in whole or in part, under Rule 18.5 or Rule 18.12, any party which did not have the opportunity to nominate an arbitrator or otherwise participate in the constitution of the Tribunal shall be deemed to have waived any such right, without prejudice to the right of such party to challenge an arbitrator pursuant to Rule 26.

18.16 Where an application for joinder is granted under Rule 18.5 or Rule 18.12, the parties and additional party may make claims, counterclaims, cross-claims, or set-offs against any other party in accordance with the provisions set out in Rule 6 and Rule 7.

SECTION IV. CONSTITUTION OF THE TRIBUNAL

19. Rules on Appointment

19.1 Unless otherwise agreed by the parties, the Tribunal shall comprise one or three arbitrators. In the event that the parties have not agreed on the number of arbitrators, a sole arbitrator shall be appointed unless the Registrar determines, after considering the views of the parties, that the dispute warrants the appointment of three arbitrators.

19.2 If the parties have agreed that an arbitrator is to be appointed by any or all of the parties, the arbitrators already appointed, or any third person, body or organisation, that agreement shall be deemed an agreement to nominate an arbitrator under these Rules and shall be subject to appointment by the President in accordance with Rule 19.4.

19.3 The President may appoint any arbitrator whose appointment has been suggested or proposed by any or all of the parties, the arbitrators already appointed, or any third person, body or organisation.

19.4 In all cases, any arbitrator nominated by any or all of the parties, the arbitrators already appointed, or any third person, body or organisation, shall be subject to appointment by the President. The President may, after considering the views of the parties, the arbitrators already appointed, or the relevant third person, body or organisation, refuse to appoint any arbitrator under this Rule 19.4.

19.5 In appointing an arbitrator under these Rules, the President shall take into account any agreed qualifications and such considerations that are relevant to the impartiality or independence of the arbitrator.

19.6 The President shall consider whether the arbitrator has sufficient availability to conduct the arbitration in a prompt and efficient manner appropriate to the nature of the dispute.

19.7 Where the parties are of different nationalities, the President shall appoint a sole arbitrator or a presiding arbitrator of a different nationality than the parties, unless the parties have otherwise agreed or the President determines it to be appropriate otherwise, taking into account any proposals by the parties and the circumstances of the case.

19.8 The Registrar may, after considering the views of the parties, extend any timelines for appointment prescribed under these Rules or otherwise agreed by the parties.

19.9 If, under the terms of an appointment procedure agreed by the parties, the appointment cannot be effected on those terms, the President shall appoint the arbitrator(s).

19.10 If, under the terms of an appointment procedure agreed by the parties, there is a substantial risk of unequal treatment that may risk affecting the validity or enforceability of the award, the President may, after considering the views of the parties, take any necessary measure to constitute an independent and impartial Tribunal. In such case, each party shall be deemed to have waived any right to nominate an arbitrator or otherwise participate in the constitution of the Tribunal, and the President may revoke the appointment of any arbitrators.

19.11 The terms of appointment of each arbitrator shall be fixed by the Registrar in accordance with these Rules and the *Practice Notes* for the time being in force. Prior to the constitution of the Tribunal, the parties may agree to alternative methods of determining the Tribunal's fees. No change to the method of determining the Tribunal's fees will be allowed after the constitution of the Tribunal.

19.12 The Tribunal shall be deemed to be constituted on the date so notified by the SIAC Secretariat to the parties.

19.13 Any decision by the President or the Registrar on appointment shall be final and not subject to appeal.

20. Disclosure

20.1 All arbitrators appointed under these Rules shall be and shall remain at all times independent and impartial, and conduct themselves in accordance with these Rules, SIAC's *Code of Ethics* and the *Practice Notes* for the time being in force. All arbitrators appointed under these Rules must sign a Statement of Acceptance, Independence, Impartiality, and Availability.

20.2 Prior to their appointment, prospective arbitrators shall disclose in writing to the Registrar any circumstances which may give rise to justifiable doubts as to their impartiality or independence and indicate if they do not possess any qualifications agreed by the parties.

20.3 After their appointment, arbitrators have a continuing obligation to immediately disclose in writing to the Registrar, the parties, and the other arbitrators any circumstances which may give rise to justifiable doubts as to their impartiality or independence.

21. Sole Arbitrator

21.1 Where a sole arbitrator is to be appointed, the parties may jointly nominate the sole arbitrator within 21 days from the date of commencement of the arbitration or within the period of time otherwise agreed by the parties or set by the Registrar.

21.2 If the parties are not able to jointly nominate the sole arbitrator within 21 days from the date of commencement of the arbitration or within the period of time otherwise agreed by the parties or set by the Registrar, the President shall appoint the sole arbitrator.

22. Three Arbitrators

22.1 Where three arbitrators are to be appointed, the Claimant shall nominate an arbitrator within 14 days from the date of commencement of the arbitration or within the period of time otherwise agreed by the parties or set by the Registrar, and the Respondent shall nominate an arbitrator within 14 days of the receipt of the Claimant's nomination of an arbitrator or within the period of time otherwise agreed by the parties or set by the Registrar.

22.2 If a party fails to nominate an arbitrator within the timelines under Rule 22.1, the President shall appoint an arbitrator on its behalf.

22.3 The presiding arbitrator shall be appointed by the President, unless the parties have agreed upon another procedure for the nomination of the presiding arbitrator or if such agreed procedure does not result in a nomination of the presiding arbitrator within the period agreed by the parties or set by the Registrar.

23. Multi-Party Appointment of Three Arbitrators

23.1 Where there are more than two parties to the arbitration and three arbitrators are to be appointed, the Claimant(s) shall jointly nominate an arbitrator and the Respondent(s) shall jointly nominate an arbitrator within 28 days from the date of commencement of the arbitration or within the period of time otherwise agreed by the parties or set by the Registrar. The presiding arbitrator shall be appointed in accordance with Rule 22.3.

23.2 In the absence of joint nominations from both the Claimant(s) and the Respondent(s) having been made within 28 days from the date of commencement of the arbitration or within the period otherwise agreed by the parties or set by the Registrar, the President shall appoint all three arbitrators and designate the presiding arbitrator.

24. Tribunal Secretary

24.1 In accordance with this Rule 24 and the *Practice Notes* for the time being in force:

(a) the Tribunal may, after considering the views of the parties and in consultation with the Registrar, appoint a Tribunal Secretary; or

(b) the Tribunal may, after considering the views of the parties and with the approval of the Registrar, appoint a member of the SIAC Secretariat as a Tribunal Secretary.

24.2 The duties of disclosure under Rule 20 shall apply, *mutatis mutandis*, to the appointment of any Tribunal Secretary.

24.3 The Tribunal shall not delegate any of its decision-making functions to the Tribunal Secretary. All tasks carried out by the Tribunal Secretary shall be carried out on behalf of, and under the supervision of, the Tribunal.

24.4 A Tribunal Secretary may be removed by the Tribunal. Where a member of the SIAC Secretariat is appointed as a Tribunal Secretary, the Tribunal shall consult with the Registrar before removing the Tribunal Secretary.

24.5 A party who wishes to challenge a Tribunal Secretary shall file a Notice of Challenge within 7 days from the date of the notice of appointment of the Tribunal Secretary or within 7 days from the date that the circumstances specified in Rule 26.1 which apply herein *mutatis mutandis*, became known or should have reasonably been known to that party.

24.6 Any challenge to the Tribunal Secretary shall be decided by the President after considering the views of the parties, the challenged Tribunal Secretary, and the Tribunal. The President shall not be required to provide reasons for the decision. The President's decision on any challenge to a Tribunal Secretary shall be final and not subject to appeal under these Rules.

24.7 In the event of the death, incapacity, resignation, withdrawal, or removal of a Tribunal Secretary during the course of the arbitration, a substitute Tribunal Secretary may be appointed in accordance with the procedure set out in Rule 24.1 and the *Practice Notes* for the time being in force.

24.8 The Tribunal shall determine the terms of appointment of the Tribunal Secretary in accordance with the *Practice Notes* for the time being in force and after considering the views of the parties.

25. Communications with the Tribunal

25.1 All communications from the parties to the Tribunal shall be made in accordance with Rule 4 and any relevant direction by the Tribunal.

25.2 Prior to the constitution of the Tribunal, a party or its representative shall not engage in any *ex parte* communications relating to the arbitration with any prospective arbitrator, including any candidate for appointment as a party-nominated arbitrator, except to:

(a) discuss the general nature of the dispute and of the anticipated proceedings;

(b) discuss the candidate's qualifications, availability, or independence, in respect of the prospective appointment; or

(c) discuss the suitability of candidates for selection as the presiding arbitrator where the parties or party-nominated arbitrators are, by agreement of the parties, to participate in that process.

A party or its representative shall not engage in any *ex parte* communications relating to the arbitration with any candidate for presiding arbitrator.

25.3 After the constitution of the Tribunal, a party or its representative shall not engage in any *ex parte* communications relating to the arbitration with any arbitrator.

SECTION V. CHALLENGE, REMOVAL AND REPLACEMENT OF ARBITRATORS

26. Challenge of Arbitrators

26.1 An arbitrator may be challenged if:

(a) circumstances exist that give rise to justifiable doubts as to the arbitrator's impartiality or independence;

(b) the arbitrator does not possess any requisite qualification on which the parties have agreed; or

(c) the arbitrator becomes *de jure* or *de facto* unable to perform his or her functions.

26.2 A party may challenge its nominated arbitrator under Rule 26.1 only for reasons of which the party becomes aware after the appointment has been made.

27. Notice of Challenge

27.1 A party who wishes to challenge an arbitrator shall file a notice of challenge with the Registrar:

(a) within 15 days from the date of receipt of the notice of appointment of the arbitrator who is being challenged; or

(b) within 15 days from the date that the reasons specified in Rule 26.1 became known or should have reasonably been known to that party.

27.2 The notice of challenge shall include a statement of the facts and legal basis supporting the challenge and shall include payment of the Challenge Filing Fee in accordance with the Schedule of Fees. The date of receipt of the notice of challenge by the Registrar shall be deemed to be the date the notice of challenge is filed.

27.3 If the Challenge Filing Fee is not paid upon the filing of the application, the Registrar may set a period of time for the challenging party to make payment. If payment is not made within this period of time, the Registrar may deem the application to be withdrawn on a without prejudice basis.

27.4 After receipt of a notice of challenge under Rule 27.1, the Registrar may order the suspension of the arbitration until the challenge is resolved. Unless the Registrar orders the suspension of the arbitration pursuant to this Rule 27.4, the challenged arbitrator shall be entitled to continue to participate in the arbitration pending the determination of the challenge by the SIAC Court in accordance with Rule 28.

27.5 If within seven (7) days from the date the notice of challenge is filed, all other parties agree to the challenge or the challenged arbitrator voluntarily withdraws from office, the SIAC Court may direct that a substitute arbitrator be appointed in accordance with Rule 30.1. In neither case does this imply acceptance of the validity of the grounds for the challenge.

28. Decision on Challenge

28.1 If the challenge is not resolved in accordance with Rule 27.5, the SIAC Court shall decide the challenge after considering the views of the parties, the challenged arbitrator, and any appointed arbitrators.

28.2 If the SIAC Court accepts the challenge, the SIAC Court shall remove the arbitrator, and a substitute arbitrator shall be appointed in accordance with Rule 30.1.

28.3 If the SIAC Court rejects the challenge, the challenged arbitrator shall continue with the arbitration.

28.4 The SIAC Court's decision on the challenge to an arbitrator under this Rule 28 shall be reasoned and shall be delivered by the SIAC Secretariat to the parties, the challenged arbitrator, and the Tribunal or any appointed arbitrators.

28.5 The SIAC Court's decision on the challenge shall be final and not subject to appeal under these Rules.

28.6 If a challenge is filed against an arbitrator who is a member of the SIAC Board or the SIAC Court, a Committee of the SIAC Court shall be constituted to decide the challenge which shall include one member who is not a member of the SIAC Board or the SIAC Court.

28.7 The parties shall be deemed to have agreed that SIAC may publish any decision of the SIAC Court on a challenge, with the names of the parties and all other identifying information redacted.

29. Removal

29.1 The SIAC Court may remove an arbitrator, after considering the views of the parties, the arbitrator whose removal is being considered, and the other arbitrators, if the SIAC Court determines that:

(a) the arbitrator has not complied with these Rules, the SIAC *Code of Ethics,* or the *Practice Notes* for the time being in force; or

(b) the arbitrator has not conducted, or participated in, the arbitration in a manner that ensures the fair, expeditious, and economical resolution of the dispute.

30. Replacement

30.1 Except as otherwise provided in these Rules, in the event of the death, incapacity, resignation, withdrawal, or removal of an arbitrator by the SIAC Court during the course of the arbitration, a substitute arbitrator shall be appointed in accordance with the procedure applicable to the nomination and appointment of the arbitrator being replaced. This procedure shall apply even if, during the process of appointing the arbitrator, a party failed to exercise its right to nominate an arbitrator. The time limits applicable to the nomination and appointment of the substitute arbitrator shall commence from the date of receipt by the parties of the notification of the arbitrator's death, incapacity, resignation, withdrawal, or removal.

30.2 Where the Tribunal comprises three or more arbitrators, the SIAC Court may determine, as appropriate and after considering the views of the parties and the remaining arbitrators, that the remaining arbitrators shall proceed with the arbitration without appointing a substitute arbitrator under Rule 30.1.

30.3 If any arbitrator is replaced under these Rules, the Tribunal shall decide, after considering the views of the parties, whether any hearings held previously shall be repeated. Unless the Tribunal decides otherwise after considering the views of the parties, any hearings held previously relating solely to a decision, ruling, order, or award shall not be repeated and the decision, ruling, order, or award shall remain in effect.

SECTION VI. THE PROCEEDINGS

31. Jurisdiction of the Tribunal

31.1 The Tribunal shall have the power to rule on its own jurisdiction, including any objections with respect to the existence, validity, applicability, or scope of the arbitration agreement. An arbitration agreement which forms part of a contract shall be treated as an agreement independent of the other terms of the contract. A decision by the Tribunal that the contract is non-existent or null and void shall not entail automatically the invalidity of the arbitration agreement.

31.2 Any objection that:

(a) the Tribunal does not have jurisdiction shall be raised no later than in a Statement of Defence or with respect to a counterclaim, in a Statement of Defence to a Counterclaim; or

(b) the Tribunal is exceeding the scope of its jurisdiction shall be raised within 15 days from the date that the matter alleged to be beyond the scope of the Tribunal's jurisdiction arises during the arbitration.

The Tribunal may admit an objection raised by a party outside the time limits under this Rule 31.2 if it considers the delay to be justified. A party is not precluded from raising an objection under this Rule 31.2 by the fact that it has nominated, or participated in the nomination of, an arbitrator.

31.3 The Tribunal may rule on an objection referred to in Rule 31.2 either as a preliminary question or in a decision or award on the merits.

32. Conduct of the Proceedings

32.1 The parties and the Tribunal shall be deemed to have agreed that the arbitration is to be conducted with diligence and professionalism and further to the principles set out in Rule 3.5(a) – Rule 3.5(c).

32.2 The Tribunal shall have the power to conduct the arbitration in such manner as it considers appropriate. In exercising its procedural discretion, the Tribunal shall at all times act fairly and impartially and ensure that each party has a reasonable opportunity to present its case.

32.3 The Tribunal shall determine the admissibility, relevance, materiality, and weight of all evidence. The Tribunal is not required to apply the rules of evidence of any applicable law in making such a determination.

32.4 As soon as practicable after the constitution of the Tribunal, the Tribunal shall convene a first case management conference with the parties to discuss the procedures that will be most appropriate and efficient for the case. At the first case management conference, the Tribunal may additionally consult with the parties on:

(a) the potential for the settlement of all or part of the dispute, including through the adoption of amicable dispute resolution methods such as mediation under the SIAC-SIMC AMA Protocol; and

(b) whether it would be appropriate to adopt environmentally sustainable procedures for the arbitration.

32.5 Any case management conference may be conducted in-person, in hybrid form, or by videoconference, teleconference, or any other form of electronic communication.

32.6 The Tribunal shall have the power to direct and schedule the order of proceedings, bifurcate proceedings, order page limits on submissions, exclude cumulative or irrelevant testimony or other evidence and direct the parties to focus their presentations on issues the determination of which could dispose of all or part of the case.

32.7 Unless otherwise agreed by the parties, the presiding arbitrator may make procedural rulings alone, subject to any later revision by the full Tribunal.

32.8 The President may request the parties and the Tribunal to attend an administrative conference to identify and discuss the procedures that will be most appropriate and efficient for the case. The administrative conference may be conducted by videoconference, teleconference, or any other form of electronic communication.

33. Written Submissions

33.1 Unless the Tribunal determines otherwise, after considering the views of the parties, the submission of written submissions shall proceed as set out in this Rule 33.

33.2 Unless already submitted pursuant to Rule 6.4, the Claimant shall, within a period of time to be determined by the Tribunal, deliver to the Respondent, the Tribunal, and the SIAC Secretariat, a Statement of Claim setting out:

(a) a statement of facts supporting the claim;

(b) the legal grounds or arguments supporting the claim; and

(c) the relief sought.

33.3 Unless already submitted pursuant to Rule 7.2, the Respondent shall, within a period of time to be determined by the Tribunal, deliver to the Claimant, the Tribunal, and the SIAC Secretariat, a Statement of Defence (and Statement of Counterclaim, if any) setting out:

(a) a statement of facts supporting the defence to the Statement of Claim and the Statement of Counterclaim (if any);

(b) the legal grounds or arguments supporting the defence, counterclaim, cross-claim, or set-off; and

(c) the relief sought.

33.4 If a Statement of Counterclaim is submitted, the Claimant shall, within a period of time to be determined by the Tribunal, deliver to the Respondent, the Tribunal, and the SIAC Secretariat, a Statement of Defence to Counterclaim setting out:

(a) a statement of facts supporting the Statement of Defence to Counterclaim;

(b) the legal grounds or arguments supporting the defence, cross-claim, or set-off; and

(c) the relief sought.

33.5 A party may amend its claim or defence, including a counterclaim, cross-claim, or set-off with leave of the Tribunal. The Tribunal shall grant such leave unless it considers it inappropriate to allow such amendment having regard to when it is requested or the prejudice to the other parties or any other circumstances. A claim or defence, including a counterclaim, cross-claim, or set-off, may not be amended in such a manner that the amended claim or defence, including a counterclaim, cross-claim, or set-off, falls outside the scope of the arbitration agreement.

33.6 The Tribunal may, after considering the views of the parties, decide which further written submissions are required from the parties or may be presented by them.

33.7 All submissions referred to in this Rule 33 shall be accompanied by copies of all supporting documents which have not previously been submitted by any party. The Tribunal may direct, after considering the views of the parties, that written submissions shall be accompanied by copies of supporting witness statements and expert reports.

34. Issues for Determination

34.1 The Tribunal shall, in consultation with the parties, and at the appropriate stages of the arbitration, use reasonable efforts to identify the issues to be determined in the arbitration and record them in a procedural order.

35. Applicable Law

35.1 The Tribunal shall apply the law or rules of law chosen by the parties as applicable to the substance of the dispute. Failing such choice by the parties, the Tribunal shall apply the law or rules of law which it determines to be appropriate.

35.2 The Tribunal shall make decisions in accordance with the terms of the contract and shall take into account any applicable usages of trade applicable to the relevant transactions.

35.3 The Tribunal shall assume the powers of an *amiable compositeur* or decide *ex aequo et bono* only if the parties have expressly authorised it to do so.

36. Seat of the Arbitration

36.1 The parties may agree on the seat of the arbitration. Failing such an agreement, the Tribunal shall determine the seat of arbitration.

37. Language of the Arbitration

37.1 The parties may agree on the language or languages of the arbitration. Failing such an agreement, the Tribunal shall determine the language or languages of the arbitration.

37.2 If a party submits a document written in a language other than the language of the arbitration, the Registrar or the Tribunal, as appropriate, may order that party to submit a translation in a form to be determined by the Registrar or the Tribunal.

37.3 For the purpose of the administration of the arbitration, the Registrar may, after considering the views of the parties, determine the language or languages of the communications between the SIAC Secretariat and the parties and the SIAC Secretariat and the Tribunal.

38. Third-Party Funding

38.1 A party shall disclose the existence of any third-party funding agreement and the identity and contact details of the third-party funder in its Notice or Response or as soon as practicable upon concluding a third-party funding agreement.

38.2 The funded party shall as soon as practicable notify the Tribunal, the parties, and the Registrar of any changes to the third-party funding agreement in respect of which disclosures had previously been made under Rule 38.1.

38.3 After the constitution of the Tribunal, a party shall not enter into a third-party funding agreement which may give rise to a conflict of interest with any member of the Tribunal. In such circumstances, the Tribunal may direct the party to withdraw from the third-party funding agreement.

38.4 The Tribunal may order the disclosure of the information referred to in Rule 38.1 and, after considering the views of the parties, may make such orders for disclosure in respect of the third-party funding agreement as it sees fit including in respect of details of the third-party funder's interest in the outcome of the proceedings and whether the third-party funder has committed to undertake adverse costs liability.

38.5 The disclosure and existence of a third-party funding agreement on its own shall not be taken as an indication of the financial status of a party.

38.6 The Tribunal may take into account any third-party funding agreement in apportioning costs under these Rules.

38.7 The Tribunal may take appropriate measures, including issuing an order or award for sanctions, damages, or costs, if a party does not comply with any obligations or orders for disclosure under this Rule 38.

39. Hearings

39.1 Unless the parties have agreed that the dispute will be decided on the basis of written submissions and any accompanying documentary evidence or as otherwise provided in these Rules, the Tribunal shall, if either party so requests or the Tribunal so decides, hold a hearing for the presentation of evidence by witnesses, including expert witnesses, and/or for oral argument.

39.2 The Tribunal shall, after considering the views of the parties, set the date, time, and format of any hearing and shall give the parties reasonable notice. The hearing may be conducted in-person, at a location determined by the Tribunal as appropriate after consulting with the parties, in hybrid form, or by videoconference, teleconference, or any other form of electronic communication.

39.3 Unless otherwise agreed by the parties, all hearings shall be conducted in private, and any recordings, transcripts, or documents used in relation to the arbitration shall be subject to the confidentiality provisions in Rule 59.

39.4 The Tribunal may deliberate in any manner and at any location it considers appropriate. Any anticipated expenses for the Tribunal's deliberations must be approved in advance by the Registrar.

40. Witnesses

40.1 Prior to any hearing, the Tribunal may direct the parties to give notice of the identity of witnesses, including expert witnesses, whom the parties intend to produce, the subject matter of their testimony, and its relevance to the issues.

40.2 The Tribunal shall have the power to order or refuse to allow the appearance of witnesses to give oral evidence at any hearing or to limit oral witness testimony at any hearing.

40.3 Any witness who gives oral evidence may be questioned by each of the parties and their representatives and the Tribunal in such manner as the Tribunal may determine.

40.4 The Tribunal may direct the testimony of witnesses to be presented in written form, either as signed or sworn statements or any other form of recording. Subject to Rule 40.2, any party may request that such a witness attend a hearing for oral examination, whether in-person, by videoconference, teleconference, or any other form of electronic communication. If the witness fails to attend for oral examination, the Tribunal may determine the weight to be placed on such written testimony, disregard such written testimony, or exclude such written testimony altogether.

40.5 Subject to any applicable laws or regulations, in respect of any witness or potential witness whose evidence it intends to adduce, a party or its representatives:

(a) may interview any such witness or potential witness;

(b) assist such witness or potential witness in the preparation of a witness statement or expert report; and

(c) meet such witness prior to his or her appearance to give oral evidence at any hearing.

A party and its representatives should seek to ensure that the evidence of fact witnesses reflects their own account of the relevant facts and the evidence of experts reflects their genuinely held opinions.

41. Tribunal-appointed experts

41.1 The Tribunal may, after considering the views of the parties, appoint one or more experts to report on issues within the scope of the disputes or to otherwise assist the Tribunal.

41.2 The Tribunal shall consult with the parties on the terms of appointment and fees of the expert.

41.3 Any expert appointed under Rule 41.1 shall provide a signed declaration relating to his or her qualifications, impartiality, and independence, prior to his or her appointment, in a form to be determined by the Tribunal. The Tribunal shall determine any objection by a party to the expert's qualifications, impartiality, or independence.

41.4 The parties shall give any expert appointed under Rule 41.1 all relevant information and produce or provide access to any relevant documents, goods or property for inspection.

41.5 Any expert appointed under Rule 41.1 shall submit a report in writing to the Tribunal. Upon receipt of such written report, the Tribunal shall deliver a copy of the report to the parties and the SIAC Secretariat, and the Tribunal shall invite the parties to submit written comments on the report.

41.6 If any party so requests or the Tribunal so decides, an expert appointed under Rule 41.1 shall, after delivery of his or her written report, attend for oral examination at a hearing, whether in-person, or by videoconference, teleconference, or any other form of electronic communication.

42. Closure of the Proceedings

42.1 The Tribunal shall, as soon as practicable after the last directed oral or written submissions in respect of matters to be decided in an award, and upon being satisfied that the parties have no further relevant and material evidence to produce or submissions to make with respect to such matters, declare the proceedings closed. The Tribunal's declaration that the proceedings are closed shall be in writing and communicated to the parties and the SIAC Secretariat.

42.2 The Tribunal may, on its own motion or upon application of a party but before any award is made, reopen the proceedings. The Tribunal's decision that the proceedings are to be reopened shall be in writing and communicated to the parties and to the SIAC Secretariat.

43. Suspension, Settlement, and Termination

43.1 The Registrar or the Tribunal, as appropriate, may suspend an arbitration in accordance with such terms as the parties have agreed or as otherwise provided in these Rules. The Registrar or the Tribunal may, after considering the views of the parties, order the tolling of any timelines.

43.2 In the event of a settlement, the Tribunal shall issue an order terminating the arbitration or, if the parties so request, the Tribunal may record the settlement in the form of a consent award on agreed terms. The Tribunal is not obliged to provide reasons for a consent award or to include the settlement terms in the consent award.

43.3 The Tribunal shall, after considering the views of the parties, issue an order terminating the arbitration where:

(a) the Claimant withdraws its claim, unless the Respondent objects thereto and the Tribunal recognises a legitimate interest on the Respondent's part in obtaining a final settlement of the dispute or any orders as to costs;

(b) the parties agree on the termination of the arbitration;

(c) the Tribunal finds that the continuation of the arbitration has become unnecessary or impossible; or

(d) the Registrar has deemed the relevant claims, counterclaims, or cross-claims to be withdrawn for non-payment of deposits in accordance with Rule 56.5(b).

43.4 Prior to the constitution of the Tribunal, the Registrar shall have the power to terminate an arbitration in accordance with these Rules.

43.5 An order of the Tribunal or the Registrar terminating the arbitration under this Rule 43 shall be effective on the date of such order, unless otherwise ordered by the Tribunal or the Registrar.

44. Non-participation and Non-compliance

44.1 If the Claimant fails to submit a Statement of Claim within the time specified by the Tribunal, the Tribunal may, after considering the views of the parties, issue an order terminating the arbitration in accordance with Rule 43, unless there are remaining matters which require determination.

44.2 If the Respondent fails to submit a Statement of Defence within the time specified by the Tribunal, or if at any point any party fails to avail itself of the opportunity to present its case in the manner directed by the Tribunal, the Tribunal may proceed with the arbitration without treating such failure in itself as an admission of any allegations.

44.3 If, without showing sufficient cause, any party fails or refuses to comply with these Rules or with any direction, decision, ruling, order, or award of the Tribunal, or to attend any meeting or hearing, the Tribunal may proceed with the arbitration. In these circumstances, the Tribunal may impose such sanctions as it deems appropriate and make an award on the evidence before it.

SECTION VII. POWERS OF THE TRIBUNAL

45. Interim Relief

45.1 Unless otherwise agreed by the parties, the Tribunal may, at the request of a party, issue an order or an award granting any interim or conservatory relief it deems appropriate. The Tribunal may order the party requesting interim or conservatory relief to provide appropriate security in connection with the relief sought.

45.2 A request for interim or conservatory relief made by a party to a judicial authority is not incompatible with these Rules and shall not be considered a breach or waiver of the arbitration agreement. Any such application to a judicial authority and any decision taken thereon must be promptly notified to the Tribunal and the Registrar.

46. Preliminary Determination

46.1 A party may apply to the Tribunal for a final and binding preliminary determination of any issue that arises for determination in the arbitration where:

(a) the parties agree that the Tribunal may determine such an issue on a preliminary basis;

(b) the applicant is able to demonstrate that the determination of the issue on a preliminary basis is likely to contribute to savings of time and costs and a more efficient and expeditious resolution of the dispute; or

(c) the circumstances of the case otherwise warrant the determination of the issue on a preliminary basis.

46.2 An application for preliminary determination under Rule 46.1 shall state the facts and legal basis supporting the application.

46.3 The Tribunal shall, after giving the parties the opportunity to be heard, decide whether to proceed with the application for preliminary determination.

46.4 If the application for preliminary determination is allowed to proceed, the Tribunal shall:

(a) determine the procedure for making such preliminary determination, having regard to the circumstances of the case and the need to provide the parties a reasonable opportunity to present their cases; and

(b) make a decision, ruling, order, or award on the application, with reasons which may be in summary form, within 90 days from the date of filing of the application, unless the Registrar extends the time.

46.5 Nothing in this Rule 46 shall limit the Tribunal's inherent powers to direct a preliminary determination of any issue that arises for determination in the arbitration.

47. Early Dismissal of Claims and Defences

47.1 A party may apply to the Tribunal for the early dismissal of a claim or defence where:

(a) a claim or defence is manifestly without legal merit; or

(b) a claim or defence is manifestly outside the jurisdiction of the Tribunal.

47.2 An application for early dismissal under Rule 47.1 shall state the facts and legal basis supporting the application.

47.3 The Tribunal shall determine whether the application for early dismissal under Rule 47.1 is allowed to proceed.

47.4 If the application for early dismissal is allowed to proceed, the Tribunal shall, after giving the parties the opportunity to be heard, make a decision, ruling, order, or award on the application, with reasons which may be in summary form. The decision, ruling, order, or award shall be made within 45 days from the date of filing the application, unless the Registrar extends the time.

48. Security for Costs

48.1 A party may apply to the Tribunal for an order that any party asserting a claim, counterclaim, or cross-claim provide security for legal costs and expenses and the costs of the arbitration.

48.2 If a party fails to comply with an order to provide such security, the Tribunal may make any consequential direction as appropriate.

48.3 A party shall promptly disclose any material change in the circumstances upon which the Tribunal has ordered security under Rule 48.1.

48.4 The Tribunal may, after considering the views of the parties, modify or revoke its order on security under Rule 48.1.

49. Security for Claims

49.1 A party may apply to the Tribunal for an order that any party responding to a claim, counterclaim, or cross-claim provide security against the relevant claim.

49.2 If a party fails to comply with an order to provide such security, the Tribunal may make any consequential direction as appropriate.

49.3 A party shall promptly disclose any material change in the circumstances upon which the Tribunal has ordered security under Rule 49.1.

49.4 The Tribunal may, after considering the views of the parties, modify or revoke its order on security under Rule 49.1.

50. Additional Powers of the Tribunal

50.1 Unless otherwise agreed by the parties, the Tribunal shall have the power to decide all procedural and evidential matters.

50.2 In addition to the other powers specified in these Rules, unless otherwise agreed by the parties or prohibited by the mandatory rules of any applicable law, the Tribunal shall have the power to:

(a) direct any party to give evidence by affidavit or in any other form;

(b) administer oaths or take affirmations of the parties and witnesses;

(c) conduct such enquiries as may appear to the Tribunal to be necessary or expedient;

(d) determine whether, and to what extent, the Tribunal should itself take the initiative in ascertaining the facts or the law;

(e) order the correction or rectification of any contract, subject to the law governing such contract;

(f) order any party to produce to the Tribunal and to the other parties for inspection, in a manner to be determined by the Tribunal, any document, property, or item in its possession or control which the Tribunal considers relevant to the case and material to its outcome;

(g) order the preservation, storage, sale, or disposal, of any document, property, or item which is or forms part of the subject matter of the dispute;

(h) direct any party to take or refrain from taking actions to ensure that any award which may be made in the arbitration is not rendered ineffectual by the dissipation of assets by a party or otherwise;

(i) decide, where appropriate, any issue not expressly or impliedly raised in the submissions of a party provided such issue has been clearly brought to the notice of all other parties and all other parties have been given an adequate opportunity to respond or provide submissions;

(j) determine the procedural law or any other law applicable to the arbitration;

(k) determine any claim of legal or other privilege;

(l) make any necessary directions, including a suspension of proceedings, for the parties to adopt any amicable dispute resolution methods such as mediation under the SIAC-SIMC AMA Protocol; and

(m) except as provided in these Rules, extend or abridge any period of time prescribed under these Rules or by its directions.

SECTION VIII. THE AWARD

51. Making of the Award

51.1 The Tribunal may make more than one award at different points in time during the arbitration on different aspects of the matters to be determined.

51.2 Where there is more than one arbitrator, the Tribunal shall decide by a majority. Failing a majority decision, the presiding arbitrator alone shall make the award for the Tribunal.

51.3 If any arbitrator fails to participate in the making of the award, having been given a reasonable opportunity to do so, the remaining arbitrators may proceed. The remaining arbitrators shall provide written notice of such failure to the Registrar, the parties, and the absent arbitrator. In deciding whether to proceed with the arbitration in the absence of an arbitrator, the remaining arbitrators may take into account, *inter alia*, the stage of the arbitration, any explanation provided by the absent arbitrator for his or her failure to participate, and the effect, if any, upon the enforceability of the award should the remaining arbitrators proceed without the absent arbitrator. The remaining arbitrators shall explain, in any award made, the reasons for proceeding without the absent arbitrator.

51.4 Unless otherwise agreed by the parties, the Tribunal shall specify in the final award the Registrar's determination of the costs of the arbitration and the Tribunal's decision on the apportionment of the costs of the arbitration.

51.5 Subject to any applicable law, the Tribunal may award simple or compound interest from such date, at such rate, and with such rest as the Tribunal considers appropriate, for:

(a) the whole or any part of any sum awarded or sum at issue in the arbitration; and

(b) any costs awarded in the arbitration.

In making its award on interest, the Tribunal shall take into account any agreement by the parties on interest.

51.6 The parties shall be deemed to have agreed that any award shall be final and binding on the parties from the date it is made, and the parties undertake to carry out the award immediately and without delay. The parties hereby irrevocably waive their rights to any form of appeal, review, or recourse to any court or other judicial authority with respect to such award insofar as such waiver may be validly made.

51.7 Unless otherwise agreed by the parties, and insofar as not prohibited by any applicable law, every award shall be final and binding between the parties in respect of the claims, counterclaims, cross-claims, and set-offs determined and, where appropriate, the issues of fact and law that it determines in order to rule on the parties' claims, counterclaims, cross-claims, and set-offs.

52. Form of the Award

52.1 The award shall be made in writing and shall be signed by the arbitrator(s). In an arbitration with more than one arbitrator, the signatures of the majority of the members of the Tribunal shall suffice, provided that the reason for any omitted signature is stated in the award.

52.2 The Tribunal may, after considering the views of the parties, and in consultation with the Registrar, determine that it is appropriate for:

(a) the award to be signed in counterpart; or

(b) the award to be signed electronically.

52.3 The award shall state the reasons upon which it is based, unless the award is by consent under Rule 43.2.

52.4 The award shall be deemed to be made at the seat of the arbitration and on the date stated therein.

52.5 The Tribunal shall deliver the award to the SIAC Secretariat, who shall deliver the award to the parties upon settlement of the costs of the arbitration.

52.6 At the request of a party, the Registrar may authenticate any award or arbitration agreement or certify any paper copies thereof.

53. Scrutiny of the Award

53.1 Within 30 days of the date of submission of the last directed oral or written submission in respect of the matters to be decided in an award, the Tribunal shall provide the parties and the SIAC Secretariat with an estimate of the time within which it proposes to submit the draft award for scrutiny under Rule 53.2.

53.2 Before making the award, the Tribunal shall submit such award in draft form to the SIAC Secretariat and inform the parties of the date of submission. The Tribunal shall submit the draft award to the SIAC Secretariat not later than 90 days from the date of submission of the last directed oral or written submission in respect of the proceedings to which the award pertains, unless the Registrar determines otherwise.

53.3 The Registrar may, as soon as practicable, suggest modifications as to the form of the draft award and, without affecting the Tribunal's liberty to decide the dispute, draw the Tribunal's attention to points of substance. The SIAC Secretariat shall inform the parties when the Registrar has completed the scrutiny.

53.4 No award shall be issued until it has been approved by the Registrar as to its form.

54. Correction, Interpretation, and Additional Awards

54.1 Within 30 days from the date of receipt of an award, a party may, by written notice to the Registrar, the Tribunal, and the other party, request the Tribunal to correct in the award any errors in computation, any clerical or typographical errors or any errors of similar nature. After considering the views of the parties on the request, if the Tribunal considers the request to be justified, it shall make the correction within 30 days from the date of receipt of the request. Any correction, made in the original award or in a separate memorandum, shall form part of the award.

54.2 The Tribunal may correct any error of the type referred to in Rule 54.1 on its own initiative within 30 days from the date of receipt of the award.

54.3 Within 30 days from the date of receipt of an award, a party may, by written notice to the Registrar, the Tribunal, and the other party, request the Tribunal to give an interpretation of a specific point or part of the award. After considering the views of the parties on the request, if the Tribunal considers the request to be justified, it shall give the interpretation in writing within 30 days from the date of receipt of the request. Any interpretation shall form part of the award.

54.4 Within 30 days from the date of receipt of an award, a party may, by written notice to the Registrar, the Tribunal, and the other party, request the Tribunal to make an additional award as to claims presented in the arbitration but not addressed in the award. After considering the views of the parties on the request, if the Tribunal considers the request to be justified, it shall make the additional award within 60 days from the date of receipt of the request.

54.5 The Registrar may extend the period of time within which the Tribunal may make a correction of an award, interpretation of an award, or an additional award under this Rule 54.

54.6 The provisions of Rule 53 shall apply, *mutatis mutandis*, to a correction, interpretation, or an additional award.

54.7 The Registrar may determine that additional costs of arbitration shall apply under this Rule 54 in relation to the Tribunal's fees and expenses and SIAC's administration fees and expenses.

55. Remission

55.1 Where a court remits an award to the Tribunal, these Rules shall apply as appropriate to the administration of the arbitration in accordance with the terms of such remission. The Registrar may take any necessary steps to enable the Tribunal to comply with the terms of such remission and may determine that additional costs of arbitration shall apply under this Rule 55.1 in relation to the Tribunal's fees and expenses and SIAC's administration fees and expenses.

SECTION IX. DEPOSITS AND COSTS

56. Deposits

56.1 The Registrar shall fix the deposits payable towards the estimated costs of the arbitration calculated in accordance with the amount in dispute under the Schedule of Fees. Unless the Registrar otherwise directs, 50 percent of such deposits shall be payable by the Claimant(s) and 50 percent of such deposits shall be payable by the Respondent(s). The Registrar may fix separate deposits for a claim, counterclaim, or cross-claim.

56.2 Where the amount in dispute is not quantifiable at the time the deposits are due, the Registrar shall make a provisional estimate of the costs of the arbitration and call for the deposits thereon. This estimate may be adjusted upon the quantification of the amount in dispute or in light of such information as may subsequently become available.

56.3 The Registrar may at any time direct the parties to make further or additional deposits towards the estimated costs of the arbitration.

56.4 Parties are jointly and severally liable for the costs of the arbitration. In the event that a party does not pay the deposits as directed, the Registrar may direct the other party to make payment of the deposits on its behalf.

56.5 If a party fails to pay the deposits as directed, the Registrar may:

(a) direct the Tribunal and the SIAC Secretariat to suspend the conduct and administration of the arbitration in whole or in part; and/or

(b) set a time limit on the expiry of which the relevant claim, counterclaim, or cross-claim shall be considered as withdrawn on a without prejudice basis.

56.6 All deposits towards the estimated costs of the arbitration shall be made to and held by SIAC. Any interest which may accrue on such deposits shall be retained by SIAC.

56.7 If a party pays the deposits towards the estimated costs of arbitration on behalf of another party, the Tribunal may issue an order or award for the reimbursement of such deposits paid.

57. Costs of the Arbitration

57.1 The Registrar shall determine the costs of the arbitration at the conclusion of the arbitration in accordance with the Schedule of Fees and the *Practice Notes* for the time being in force.

57.2 Under these Rules, the term "*costs of the arbitration*" shall comprise:

(a) the Tribunal's fees and expenses;

(b) SIAC's administration fees and expenses;

(c) the Emergency Arbitrator's fees and expenses;

(d) the Tribunal Secretary's fees and expenses;

(e) the costs of any expert appointed by the Tribunal and of any other assistance reasonably required by the Tribunal; and

(f) the Filing Fees.

57.3 The costs of the arbitration shall include any applicable government or statutory taxes.

57.4 The Tribunal's fees and SIAC's fees shall be subject to the maximum limits based on the amount in dispute in accordance with the Schedule of Fees. The Registrar shall have the power to:

(a) determine that the maximum limits calculated in accordance with the Schedule of Fees shall be maintained notwithstanding an amendment to the amount in dispute; and

(b) determine that an additional fee over and above the maximum limits prescribed in the Schedule of Fees shall apply to the Tribunal's fees and SIAC's fees.

57.5 In the event that the costs of the arbitration as determined by the Registrar are less than the deposits paid by the parties, there shall be a refund to the parties of their respective unutilised deposits or in such proportions as the parties may agree.

57.6 The Tribunal's reasonable expenses and other allowances shall be reimbursed in accordance with the *Practice Notes* for the time being in force.

57.7 The Registrar may from time to time allow an interim payment to the Tribunal in accordance with these Rules and the *Practice Notes* for the time being in force.

57.8 The Registrar's determination of the costs of the arbitration shall be final and not subject to appeal or review under these Rules.

58. Legal and Other Costs

58.1 The Tribunal shall have the power to order in the award that all or a part of a party's legal or other costs shall be paid by another party. In exercising its power, the Tribunal shall take into account such circumstances as it considers relevant including the conduct of the parties during the proceedings.

SECTION X. GENERAL PROVISIONS

59. Confidentiality

59.1 Unless otherwise agreed by the parties, or as otherwise provided in these Rules, the parties, and any party representative, witness or expert, third-party funder, the members of any Tribunal, any Emergency Arbitrator, and any person appointed by a Tribunal, including any Tribunal Secretary and any Tribunal-appointed expert, the SIAC Court, the President, the Vice President, the Registrar, and the SIAC Secretariat shall be under a continuing obligation to treat all matters relating to the proceedings as confidential.

59.2 The discussions and deliberations of the Tribunal, the SIAC Court, and the SIAC Secretariat shall be confidential.

59.3 Unless otherwise agreed by the parties, or as otherwise provided in these Rules, the parties, and any party representative, witness or expert, third-party funder, the members of any Tribunal, any Emergency Arbitrator, and any person appointed by a Tribunal, including any Tribunal Secretary and any Tribunal-appointed expert, shall not, without the prior written consent of the parties, disclose to a third party any such matter except:

(a) for the purpose of making an application to any competent court of any jurisdiction to challenge or enforce the award;

(b) pursuant to the order of or a subpoena issued by a court of competent jurisdiction;

(c) for the purpose of pursuing or enforcing a legal right or claim;

(d) in compliance with the provisions of the laws of any jurisdiction which are binding on the party making the disclosure or the request or requirement of any regulatory body or other authority;

(e) pursuant to an order by the Tribunal on application by a party with proper notice to the parties; or

(f) for the purpose of any application under these Rules.

59.4 In Rule 59.1, "*matters relating to the proceedings*" includes the existence of the arbitration, the deliberations of the Tribunal, the pleadings, evidence, submissions, and all other materials and written communications produced and submitted by the parties in the arbitration, and any decision, ruling, order, or award, save where the information is, without any breach of Rule 59.1 and Rule 59.2, otherwise in the public domain.

59.5 The Tribunal has the power to enforce any obligation of confidentiality on the parties under these Rules, in accordance with the applicable law or pursuant to the parties' agreement, and may issue an order or award for sanctions, damages, or costs and take measures to protect trade secrets.

60. Publication

60.1 SIAC may, with the agreement in writing of all parties, publish any decision, ruling, order, or award of a Tribunal with the names of the parties and other identifying information redacted.

61. Information Security

61.1 As soon as practicable after the commencement of the arbitration, any party may propose and seek to agree on reasonable measures to protect the information that is shared, stored, or processed in relation to the arbitration.

61.2 At the first case management conference and any other appropriate stage of the proceedings, the Tribunal shall discuss with the parties the information security measures described in Rule 61.1. The Tribunal may, after considering the views of the parties, give directions to the parties in that regard, taking into account the circumstances of the case and relevant best practices on information security, including cybersecurity and cyber resilience.

61.3 The Tribunal shall have the power to take appropriate measures, including issuing an order or award for sanctions, damages, or costs, if a party does not take necessary steps to comply with the information security measures agreed by the parties and/or directed by the Tribunal.

62. Document Retention

62.1 SIAC shall maintain an archive of each arbitration commenced under these Rules for a minimum of six (6) years from the date the final award was issued or the arbitration was terminated unless otherwise requested by a party to maintain an archive of an arbitration for a longer period. SIAC may thereafter dispose of such documents in a confidential manner without notice to the parties or the Tribunal.

63. Decisions by SIAC

63.1 Except as provided in these Rules, the decisions of the SIAC Court, the President, the Vice President, the Registrar, and the SIAC Secretariat with respect to all matters relating to an arbitration shall be conclusive and binding upon the parties and the Tribunal. Except as provided in these Rules, the SIAC Court, the President, the Vice President, the Registrar, and the SIAC Secretariat are not required to provide reasons for such decisions but may provide such reasons at the joint request of the parties.

63.2 The SIAC Court may delegate its powers under these Rules to a Committee of the SIAC Court.

63.3 At the President's request, or if for any reason the President is unable to act, the Vice President or the Registrar is authorised to exercise the powers of the President under these Rules.

63.4 The parties waive any right of appeal or review in respect of any decisions of the SIAC Court, the President, the Vice President, the Registrar, and the SIAC Secretariat to any court or other judicial authority insofar as such waiver can be validly made.

64. Waiver

64.1 If a party knows or ought to have reasonably known that any provision of these Rules, an agreement of the parties including any agreement relating to the constitution of the Tribunal or the conduct of the proceedings, or any other rules applicable to the proceedings, or any direction given in relation to the arbitration has not been complied with, and does not state its objection in writing before the expiry of any time limit provided in these Rules for such objection, or in the absence of such time limit, within 15 days from the date of such knowledge, it shall be deemed to have irrevocably waived any right to object.

65. Exclusion of Liability

65.1 The parties shall be deemed to have agreed that SIAC (including its officers and employees), members of the SIAC Board, members of the SIAC Court, the President, the Vice President, the Registrar, the SIAC Secretariat, the members of any Tribunal, any Emergency Arbitrator, and any person appointed by a Tribunal, including any Tribunal Secretary and any Tribunal-appointed expert, shall not be liable to any person howsoever for any negligence or any act or omission including any decision, determination, or ruling or alleged failure to make any decision, determination, or ruling, or any mistake in law, fact, or procedure made during the course of the arbitration, except to the extent that it can be demonstrated that such act or omission or mistake was carried out fraudulently, and the parties shall be deemed to have further agreed that such exclusion of liability as agreed upon in this Rule 65.1 is fair and reasonable.

65.2 The parties shall be deemed to have agreed that SIAC (including its officers and employees), members of the SIAC Board, members of the SIAC Court, the President, the Vice President, the Registrar, the SIAC Secretariat, the members of any Tribunal, any Emergency Arbitrator, any person appointed by a Tribunal, including any Tribunal Secretary and any Tribunal-appointed expert, shall not be under any obligation to make any statement in connection with any arbitration administered by SIAC in accordance with these Rules, and no party shall seek to make, summon, join, subpoena, or otherwise involve any of these persons or bodies as a party or a witness in any judicial, arbitration, administrative, or any other proceedings related to the arbitration or otherwise.

SCHEDULE 1. EMERGENCY ARBITRATOR PROCEDURE

Application for Emergency Interim Relief

1. A party requiring emergency interim or conservatory relief in accordance with Rule 12.1 may file an application with the Registrar for the appointment of an Emergency Arbitrator ("Application").

2. An Application may be filed:

   (a) prior to the filing of the Notice;

   (b) concurrent with the filing of the Notice; or

   (c) any time after the filing of the Notice or the Response but prior to the constitution of the Tribunal.

3. The Application shall include:

   (a) any Notice which has been filed in the arbitration and the supporting documents thereon;

   (b) the identity and contact details of the parties to the arbitration and their representatives;

   (c) a statement certifying that all parties have been provided with a copy of the Application or, if not, an explanation of the steps taken to provide a copy or notification of the Application to all parties;

   (d) a copy or description of the arbitration agreement invoked;

   (e) a copy or description of the contract or other instrument out of or in connection to which the dispute arises;

   (f) a description of the circumstances giving rise to the Application and of the underlying dispute referred or to be referred to arbitration;

(g) a statement of the emergency interim or conservatory relief sought and the reasons why such relief is required on an emergency basis and cannot await the constitution of the Tribunal;

(h) any comment as to the applicable rules of law, seat of the arbitration and the language of the arbitration for the emergency proceedings;

(i) a statement on the existence of any third-party funding agreement and the identity and contact details of the third-party funder; and

(j) English translations of any documents filed in a language other than in English.

4. The Application shall be accompanied by payment of the EA Filing Fee and the deposits towards the Emergency Arbitrator's fees and expenses in accordance with the Schedule of Fees.

5. The Registrar may call for additional deposits from the applicant towards the Emergency Arbitrator's fees and expenses. If the additional deposits are not paid within the period of time set by the Registrar, the Application shall be considered as withdrawn on a without prejudice basis.

6. If the Application is filed under paragraph 2(a) of this Schedule 1, and the Notice is not filed within 7 days from the date of the Registrar's receipt of the Application, the Application shall be considered as withdrawn on a without prejudice basis unless the Registrar extends the time.

Appointment of Emergency Arbitrator

7. If the President determines that SIAC shall accept the Application, the President shall seek to appoint an Emergency Arbitrator within 24 hours from the later of:

(a) the date of receipt by the Registrar of the Application; or

(b) the date of receipt of payment of the EA Filing Fee and deposits.

8. The duties of disclosure under Rule 20 shall apply, *mutatis mutandis*, to the appointment of an Emergency Arbitrator.

Challenge of Emergency Arbitrator

9. A party who wishes to challenge an Emergency Arbitrator shall file a notice of challenge with the Registrar:

   (a) within 24 hours from the date of receipt of the notice of appointment of the Emergency Arbitrator; or

   (b) within 24 hours from the date that the circumstances specified in Rule 26.1 became known or should have reasonably been known to that party.

   A party is not permitted to challenge an Emergency Arbitrator after the constitution of the Tribunal.

10. If within 24 hours from the date the notice of challenge is filed, the other party agrees to the challenge or the challenged Emergency Arbitrator voluntarily withdraws from office, the SIAC Court may direct that a substitute Emergency Arbitrator be appointed in accordance with Rule 30.1 and Schedule 1. In neither case does this imply acceptance of the validity of the grounds for the challenge.

11. The procedure for challenge and replacement of an arbitrator provided in Rule 27, Rule 28, and Rule 30, shall apply, *mutatis mutandis*, to a challenge to an Emergency Arbitrator, save that the SIAC Court may determine that no reasons are to be provided for its decision on the challenge.

Conduct of Emergency Interim Relief Proceedings

12. If the parties have agreed on the seat of the arbitration, such seat shall be the seat of the emergency interim relief proceedings. Failing such an agreement, the seat of the emergency interim relief proceedings shall be Singapore, without prejudice to the Tribunal's determination of the seat of the arbitration in accordance with Rule 36.1.

13. The Emergency Arbitrator shall have the power to conduct the emergency interim relief proceedings in such manner as the Emergency Arbitrator considers appropriate, taking into account the inherent urgency of emergency interim relief proceedings. The Emergency Arbitrator shall have all the powers vested in the Tribunal pursuant to these Rules, including the power to rule on its own jurisdiction, without prejudice to the Tribunal's determination.

14. The Emergency Arbitrator shall establish a schedule for consideration of the Application within 24 hours after its appointment. In the event a party does not participate in the emergency proceedings, the Emergency Arbitrator may conduct the proceedings in the party's absence.

15. Unless the parties have agreed that the Application shall be decided on the basis of written submissions and any accompanying documentary evidence, the Emergency Arbitrator shall, if either party so requests or the Emergency Arbitrator so decides, hold a hearing for determination of the Application. Taking into account the inherent urgency of emergency interim relief proceedings, the hearing may be conducted in-person, in hybrid form, or by videoconference, teleconference, or any other form of electronic communication.

Order or Award

16. The Emergency Arbitrator shall have the power to make a preliminary order pending the provision of any written submissions or consideration of the Application.

17. The Emergency Arbitrator shall have the power to order or award any interim relief that the Emergency Arbitrator deems necessary. The Emergency Arbitrator shall make the order or award within 14 days from the date of the Emergency Arbitrator's appointment unless the Registrar extends the time. No order or award shall be made by the Emergency Arbitrator until it has been approved by the Registrar in accordance with Rule 53.

18. The Emergency Arbitrator may make an order or award subject to such conditions as the Emergency Arbitrator deems appropriate, including requiring the provision of appropriate security.

19. Prior to the constitution of the Tribunal, the Emergency Arbitrator, on its own initiative or upon the reasoned request of a party, shall have the power to:

(a) reconsider, modify, or vacate any order or award; and

(b) make an additional order or award as to any claim for emergency interim relief presented in the emergency interim relief proceedings but not decided in any order or award of the Emergency Arbitrator.

20. An order or award issued by the Emergency Arbitrator shall cease to be binding:

(a) if the parties so agree;

(b) if the Emergency Arbitrator or the Tribunal so decides;

(c) if the Application is considered as withdrawn in accordance with paragraph 5 or paragraph 6 of this Schedule 1;

(d) if the Tribunal is not constituted within 90 days from the date of the order or award, unless the Registrar extends the time;

(e) if the claims in the arbitration are withdrawn or the arbitration is terminated prior to the issuance of the final award; or

(f) upon issuance of the final award, unless the Tribunal determines otherwise.

21. The Emergency Arbitrator shall have no power to act after the Tribunal is constituted. The Tribunal may affirm, reconsider, modify, or vacate any order or award issued by the Emergency Arbitrator, including a ruling on its jurisdiction. The Tribunal shall not be bound by the reasons given by the Emergency Arbitrator.

22. An Emergency Arbitrator may not act as an arbitrator in the arbitration, unless otherwise agreed by the parties.

23. The parties shall be deemed to have agreed that an order or award by an Emergency Arbitrator pursuant to this Schedule 1 shall be binding on the parties from the date it is made, and the parties undertake to carry out the order or award immediately and without delay. The parties hereby irrevocably waive their rights to any form of appeal, review, or recourse to any court or other judicial authority with respect to such order or award insofar as such waiver may be validly made.

Costs of Emergency Interim Relief Proceedings

24. The costs associated with any Application pursuant to this Schedule 1 may initially be apportioned by the Emergency Arbitrator, subject to the power of the Tribunal to finally determine the apportionment of such costs.

Protective preliminary order application

25. Unless otherwise agreed by the parties, a party may file an Application without complying with paragraph 3(c) of this Schedule 1, and without notice to the other parties, to make a request for the appointment of an Emergency Arbitrator to consider a request for an interim measure together with an application for a preliminary order directing a party not to frustrate the purpose of the emergency interim or conservatory measure requested (a "protective preliminary order application").

26. If the President determines that SIAC shall accept a protective preliminary order application under paragraph 25 of this Schedule 1, the President shall appoint an Emergency Arbitrator in accordance with the timelines in paragraph 7 of this Schedule 1.

27. The Emergency Arbitrator shall determine the protective preliminary order application within 24 hours after its appointment.

28. The order of the Emergency Arbitrator in respect of the protective preliminary order application shall be delivered by the Emergency Arbitrator to the SIAC Secretariat. The SIAC Secretariat shall transmit the Emergency Arbitrator's order to all parties to the arbitration.

29. The applicant shall promptly and, in any event, within 12 hours of the transmission by the SIAC Secretariat of the Emergency Arbitrator's order in respect of the protective preliminary order application, deliver a copy of all the case papers filed in the arbitration, the Emergency Arbitrator's order, and all other communications, including the content of any oral communication at any hearing, between the applicant and the Emergency Arbitrator, to all the parties, and provide a statement to the Registrar and the Emergency Arbitrator certifying that it has done so, or if not accomplished, an explanation of the steps taken to do so.

30. Any preliminary order granted by the Emergency Arbitrator in respect of the protective preliminary order application shall expire 3 days after the date on which it was issued if the applicant fails to furnish the statement or explanation within such time as stipulated under paragraph 29 of this Schedule 1.

31. The Emergency Arbitrator shall provide an opportunity to any party against whom a protective preliminary order is directed to present its case at the earliest practicable time.

32. The Emergency Arbitrator shall decide promptly on any objection to the protective preliminary order.

33. A protective preliminary order shall expire 14 days after the date on which it was issued by the Emergency Arbitrator. The Emergency Arbitrator may, in accordance with the procedures in this Schedule 1, issue an order or award adopting or modifying the protective preliminary order, or granting such other emergency interim relief as appropriate, after all parties have been given an opportunity to present their cases.

34. If the President rejects the request to appoint an Emergency Arbitrator to consider a protective preliminary order application:

    (a) such decision will be communicated to all parties by the SIAC Secretariat; and

    (b) the applicant shall promptly comply with paragraph 3(c) of this Schedule 1.

The protective preliminary order application shall thereafter be dealt with as an Application in accordance with this Schedule 1, and the procedures set out in this Schedule 1 shall apply, save that the timeline provided for in paragraph 7 shall run from the date of the applicant's compliance with paragraph 3(c) of this Schedule 1.

General Provisions

35. The Registrar may extend or abridge any period of time under this Schedule 1.

36. These Rules shall apply as appropriate to any arbitration pursuant to this Schedule 1, taking into account the inherent urgency of emergency interim relief proceedings. The Emergency Arbitrator may decide the manner in which this Schedule 1 shall apply as appropriate, and except as otherwise provided under these Rules, the Emergency Arbitrator's decision as to such matters is final and not subject to appeal, review, or recourse.

SCHEDULE 2. STREAMLINED PROCEDURE

Appointment of Sole Arbitrator

1. In all arbitrations conducted under this Schedule 2, a sole arbitrator shall be appointed.

2. The parties may jointly nominate the sole arbitrator within 3 days from the date of the SIAC's Secretariat's notification to the parties under Rule 13.2 that the Streamlined Procedure shall apply to the arbitration.

3. If the parties are not able to jointly nominate the sole arbitrator within 3 days from the date of the SIAC's Secretariat's notification to the parties under Rule 13.2 that the Streamlined Procedure shall apply to the arbitration, or if at any time a party so requests, the President shall appoint the sole arbitrator as soon as practicable.

4. The duties of disclosure under Rule 20 shall apply, *mutatis mutandis*, to the appointment of a sole arbitrator under this Schedule 2.

Challenge of Sole Arbitrator

5. A party who wishes to challenge an arbitrator appointed under the Streamlined Procedure shall file a notice of challenge with the Registrar:

   (a) within 3 days from the date of receipt of the notice of appointment of the arbitrator; or

   (b) within 3 days from the date that the reasons specified in Rule 26.1 became known or should have reasonably been known to that party.

6. If within 3 days after the date the notice of challenge is filed, the other party agrees to the challenge or the challenged arbitrator voluntarily withdraws from office, the SIAC Court may direct that a substitute arbitrator be appointed in accordance with Rule 30.1 and Schedule 2. In neither case does this imply acceptance of the validity of the grounds for the challenge.

7. The procedure for challenge and replacement of an arbitrator provided in Rule 27, Rule 28, and Rule 30 shall apply, *mutatis mutandis*, to a challenge to an arbitrator under this Schedule 2, save that the SIAC Court may determine that no reasons are to be provided for its decision on the challenge.

Conduct of Streamlined Proceedings

8. Within 5 days from the date of constitution of the Tribunal, the Tribunal shall conduct a case management conference with the parties to discuss the timetable for the conduct of the proceedings including the determination of any interlocutory applications.

9. The Tribunal shall have the power to conduct the streamlined proceedings in such manner as the Tribunal considers appropriate, taking into account the timelines under the Streamlined Procedure.

10. In exercising its procedural discretion under this Schedule 2, the Tribunal may set a time limit on the expiry of which the parties shall not be entitled to file any interlocutory applications without leave of the Tribunal.

11. Unless the Tribunal determines otherwise, after considering the views of the parties:

    (a) the arbitration shall be decided on the basis of written submissions and any accompanying documentary evidence;

    (b) no party shall be entitled to make requests for document production; and

    (c) no party shall be entitled to file any fact or expert witness evidence.

12. No hearing shall be conducted unless the Tribunal determines that a hearing is necessary under the circumstances or a party requests a hearing and the Tribunal accepts the request. Any such hearing shall be conducted by videoconference, teleconference, or any other form of electronic communication unless the parties agree or the Tribunal determines that it is appropriate to conduct an in-person or hybrid hearing.

Award

13. The Tribunal shall state the reasons upon which any award is based in summary form, unless the Parties have agreed that no reasons are to be given.

14. The provisions of Rule 53 shall apply to an arbitration conducted under this Schedule 2 subject to such modifications to the timelines prescribed under that provision as may be directed by the Registrar.

15. The final award shall be made within 3 months from the date of constitution of the Tribunal, unless the Registrar extends the time for making such final award.

Costs

16. The Tribunal's fees and SIAC's fees shall not exceed 50 percent of the maximum limits based on the amount in dispute in accordance with the Schedule of Fees, unless the Registrar determines otherwise.

General Provisions

17. The parties shall be deemed to have agreed that, where the arbitration is conducted in accordance with the Streamlined Procedure, the rules and procedures set out in Rule 13 and Schedule 2 shall apply and take precedence over any inconsistent or contrary terms in the arbitration agreement including a term providing for the appointment of a Tribunal comprising more than one arbitrator.

18. Any application under Rule 46 or Rule 47 shall not be allowed in an arbitration conducted under the Streamlined Procedure.

19. The Registrar may extend or abridge any time limits under this Schedule 2.

20. The Tribunal may, in consultation with the parties, and with the approval of the Registrar, order that the arbitration shall no longer be conducted in accordance with the Streamlined Procedure. Notwithstanding such an order by the Tribunal, the arbitration shall continue to be conducted by the same Tribunal that was constituted to conduct the arbitration in accordance with the Streamlined Procedure.

21. These Rules shall apply as appropriate to any arbitration pursuant to this Schedule 2, taking into account the streamlined nature of the proceedings. The Tribunal may decide the manner in which this Schedule 2 shall apply as appropriate, and the Tribunal's decision as to such matters is final and not subject to appeal, review, or recourse.

SCHEDULE 3. EXPEDITED PROCEDURE

Appointment of Tribunal

1. In all arbitrations conducted under this Schedule 3, a sole arbitrator shall be appointed unless the President determines otherwise.

2. The Tribunal shall be constituted in accordance with the appointment provisions under these Rules which shall apply as appropriate.

Conduct of Proceedings

3. In an arbitration conducted under this Schedule 3:

   (a) the dispute shall be decided on the basis of written submissions and any accompanying documentary evidence, unless any party requests a hearing or the Tribunal decides that a hearing would be appropriate;

   (b) the Tribunal shall hold any hearing by videoconference, teleconference, or any other form of electronic communication unless the parties agree or the Tribunal determines that it is appropriate to conduct an in-person or hybrid hearing;

   (c) the Tribunal shall have the power to adopt any procedural mechanisms as it considers appropriate taking into account the timelines under the Expedited Procedure; and

   (d) the Tribunal may, after considering the views of the parties, decide not to allow requests for document production or to limit the number, length, and scope, of written submissions and written witness evidence.

Award

4. The Tribunal shall state the reasons upon which any award is based in summary form, unless the Parties have agreed that no reasons are to be given.

5. The provisions of Rule 53 shall apply to an arbitration conducted under this Schedule 3 subject to such modifications to the timelines prescribed under that provision as may be directed by the Registrar.

6. The final award shall be made within 6 months from the date of constitution of the Tribunal, unless the Registrar extends the time for making such final award.

General Provisions

7. The parties shall be deemed to have agreed that, where an arbitration is conducted in accordance with the Expedited Procedure, the rules and procedures set out in Rule 14 and Schedule 3 shall apply and take precedence over any inconsistent or contrary terms in the arbitration agreement including a term providing for the appointment of a Tribunal comprising more than one arbitrator.

8. The Tribunal may, in consultation with the parties and the Registrar, order that the arbitration shall no longer be conducted in accordance with the Expedited Procedure. Notwithstanding such an order by the Tribunal, the arbitration shall continue to be conducted by the same Tribunal that was constituted to conduct the arbitration in accordance with the Expedited Procedure.

9. The Registrar may extend or abridge any time limits under this Schedule 3.

10. These Rules shall apply as appropriate to any arbitration pursuant to this Schedule 3, taking into account the expedited nature of the proceedings. The Tribunal may decide the manner in which this Schedule 3 shall apply as appropriate, and the Tribunal's decision as to such matters is final and not subject to appeal, review, or recourse.

Schedule of Fees

This Schedule of Fees is effective as of 1 January 2025 and is applicable to all arbitrations commenced on or after 1 January 2025. All sums stated are in Singapore dollars.

Users are recommended to refer to the Schedule of Fees on the SIAC website (https://siac.org.sg/) as the Schedule and accompanying notes may be updated from time to time.

Case Filing Fee (Non-Refundable)

A filing fee is applicable to all arbitrations administered by SIAC.

Singapore Parties	S$3,270*
Overseas Parties	S$3,000

** Fee includes 9% GST.*

Administration Fees

The administration fees calculated in accordance with the Schedule below apply to all arbitrations administered by SIAC and is the maximum amount payable to SIAC.

Sum in Dispute (S$)	Administration Fees (S$)
Up to 100,000	5,000
100,001 to 500,000	5,000 + 1.250% excess over 100,000
500,001 to 1,000,000	10,000 + 1.000% excess over 500,000
1,000,001 to 2,000,000	15,000 + 0.900% excess over 1,000,000
2,000,001 to 5,000,000	24,000 + 0.400% excess over 2,000,000
5,000,001 to 10,000,000	36,000 + 0.240% excess over 5,000,000

Sum in Dispute (S$)	Administration Fees (S$)
10,000,001 to 50,000,000	48,000 + 0.080% excess over 10,000,000
50,000,001 to 100,000,000	80,000 + 0.036% excess over 50,000,000
100,000,001 to 250,000,000	98,000 + 0.008% excess over 100,000,000
250,000,001 to 500,000,000	110,000 + 0.008% excess over 250,000,000
500,000,001 to 1,000,000,000	130,000 + 0.004% excess over 500,000,000
Above 1,000,000,000	150,000

SIAC will charge a minimum administration fee of S$5,000 in regular cases; and S$2,500 in streamlined cases, unless the Registrar otherwise determines.

The administration fees do not include the following:

- Fees and expenses of the Tribunal
- Usage cost of facilities and support services for and in connection with any hearing (e.g., hearing rooms and equipment, transcription and interpretation services etc)
- SIAC's administrative expenses
- 9% GST as may be applicable
- Fees and expenses of an emergency arbitrator
- Fees and expenses of a tribunal secretary

Arbitrator's Fees

For arbitrations administered by SIAC, the fee calculated in accordance with the Schedule below is the maximum amount payable to each arbitrator.

Sum in Dispute (S$)	Arbitrator's Fees (S$)
Up to 50,000	5,000
50,001 to 100,000	10,000
100,001 to 500,000	10,000 + 6.250% excess over 100,000

Sum in Dispute (S$)	Arbitrator's Fees (S$)
500,001 to 1,000,000	35,000 + 5.000% excess over 500,000
1,000,001 to 2,000,000	60,000 + 2.500% excess over 1,000,000
2,000,001 to 5,000,000	85,000 + 1.500% excess over 2,000,000
5,000,001 to 10,000,000	130,000 + 0.800% excess over 5,000,000
10,000,001 to 50,000,000	170,000 + 0.300% excess over 10,000,000
50,000,001 to 100,000,000	290,000 + 0.150% excess over 50,000,000
100,000,001 to 250,000,000	365,000 + 0.070% excess over 100,000,000
250,000,001 to 500,000,000	470,000 + 0.060% excess over 250,000,000
500,000,001 to 1,000,000,000	620,000 + 0.040% excess over 500,000,000
Above 1,000,000,000	820,000 + 0.040% excess over 1,000,000,000 up to a maximum of 2,000,000

The above Arbitrator's Fees do not include 9% GST or its equivalent in the relevant jurisdiction, as may be applicable. Subject to the application of any applicable Double Taxation Agreement, withholding tax will apply to income derived by non-resident arbitrators from arbitration work carried out in Singapore beginning from 1 April 2023.

EA Filing Fee

The following fees shall be payable for an application for emergency interim relief under Rule 12.1 and Schedule 1 of the SIAC Rules 2025. An application under Rule 12.1 and Schedule 1 must be accompanied by a payment of:

1. **Administration Fee for Emergency Arbitrator Applications (Non-Refundable):**

Singapore Parties	S$5,450*
Overseas Parties	S$5,000

** Fee includes 9% GST.*

2. **Emergency Arbitrator's Fees and Deposits:** The deposit towards the Emergency Arbitrator's fees and expenses shall be fixed at S$30,000, unless the Registrar determines otherwise pursuant to Schedule 1 to the SIAC Rules. The Emergency Arbitrator's fees shall be fixed at S$25,000, unless the Registrar determines otherwise pursuant to Schedule 1 of the SIAC Rules.

Challenge Filing Fee (Non-Refundable)

A party submitting a notice of challenge in cases administered by SIAC shall make payment of the following Challenge Filing Fee:

Challenge Filing Fee (Non-Refundable):

Singapore Parties	S$10,900*
Overseas Parties	S$10,000

** Fee includes 9% GST.*

Joinder Filing Fee (Non-Refundable)

A party submitting an application for joinder under Rule 18.1 of the SIAC Rules 2025 shall make payment of the following Joinder Filing Fee:

Joinder Filing Fee (Non-Refundable):

Singapore Parties	S$5,450*
Overseas Parties	S$5,000

** Fee includes 9% GST.*

Arb-Med-Arb Fees

Arb-Med-Arb	Singapore Parties	SIAC S$3,270* + SIMC S$1,000 = S$4,270
	Overseas Parties	SIAC S$3,000 + SIMC S$1,000 = S$4,000

** SIAC Fee includes 9% GST.*

Other Fees

The fees set out under this 'Other Fees' section are effective as of 1 January 2025 and are applicable to all requests for the relevant service received on or after 1 January 2025.

Appointment Fees (Non-Refundable)

The appointment fee is payable where a request for appointment of arbitrator(s) is made in an ad hoc case. The fee is payable by the party requesting the appointment. A request for appointment must be accompanied by payment of the appointment fee prescribed below.

	1 arbitrator	**2 arbitrators**	**3 arbitrators**
Singapore Parties	S$5,450*	S$8,720*	S$10,900*
Overseas Parties	S$5,000	S$8,000	S$10,000

** Fees include 9% GST.*

Authentication & Certification Service (Non-Refundable)

SIAC's charges for the authentication and certification of arbitration awards made in Singapore, or arbitration agreements, are as follows:

Authentication / Certification Fee	S$250.00 (for each authenticated/ certified copy)
Incidentals	S$25.23
9% GST	S$24.77
Total	**S$300.00**

Assessment or Taxation Fees

Under the Singapore International Arbitration Act 1994 ("**IAA**"), the Registrar of the Court of Arbitration of SIAC ("**Registrar**") is the statutory taxation authority. Pursuant to Article 21 of the IAA, "[a]*ny costs directed by an award to be paid are, unless the award otherwise directs, assessable by the* [Registrar]". The process is sometimes called "**taxation**" of costs.

As a general practice, SIAC encourages the Tribunal to specify in an award and the *dispositif*, the total amount awarded or apportioned in respect of the costs of arbitration and the parties' legal and other costs, and provide reasons in the award for the awarding or apportionment of these amounts to / among the parties. However, if the Tribunal does not assess or apportion the costs in an award, and the parties fail to reach an agreement on the amount to be borne by each party, the Registrar may be requested to assess the amount for the parties pursuant to Article 21 of the IAA.

The party that requires the Registrar's taxation services pays a fee according to the amount of costs claimed in accordance with the table below:

Amount of Costs Claimed (S$)	Assessment or Taxation Fee (S$)
Up to 50,000	5,000
50,001 – 100,000	5,000 + 2% of excess over 50,000
100,001 – 250,000	6,000 + 1.5% of excess over 100,000
250,001 – 500,000	8,250 + 1% of excess over 250,000
500,001 – 1,000,000	10,750 + 0.5% of excess over 500,000
Above 1,000,000	13,250 + 0.25% of excess over 1,000,000
Maximum	25,000

The fee is payable at the time of request for taxation or assessment.
The above fees do not include 9% GST as may be applicable.
The above schedule of assessment or taxation fees is effective as of 1 January 2025.

Payment Information

Payments may be made by a local cheque from a Singapore bank payable to "**Singapore International Arbitration Centre**" or by bank transfer to our bank account. Please note that cheques from overseas banks will not be accepted. For bank details, please contact us at +65 6713 9777 or casemanagement@siac.org.sg.

All cheques should be sent directly to:

Singapore International Arbitration Centre
28 Maxwell Road #03-01
Maxwell Chambers Suites
Singapore 069120

Attn: Accounts Department (**Please indicate party name/case reference number if available at the back of the cheque**)

SIAC-SIMC Arb-Med-Arb Protocol ("AMA Protocol")

(As of 5 November 2014)

1. This AMA Protocol shall apply to all disputes submitted to the Singapore International Arbitration Centre ("SIAC") for resolution under the Singapore Arb-Med-Arb Clause or other similar clause ("AMA Clause") and/or any dispute which parties have agreed to submit for resolution under this AMA Protocol. Under the AMA Protocol, parties agree that any dispute settled in the course of the mediation at the Singapore International Mediation Centre ("SIMC") shall fall within the scope of their arbitration agreement.

2. A party wishing to commence an arbitration under the AMA Clause shall file with the Registrar of SIAC a notice of arbitration in accordance with the arbitration rules applicable to the arbitration proceedings ("Arbitration Rules"), which Arbitration Rules shall be either: (i) the Arbitration Rules of the SIAC (as may be revised from time to time); or (ii) the UNCITRAL Arbitration Rules (as may be revised from time to time) where parties have agreed that SIAC shall administer such arbitration.

3. The Registrar of SIAC will inform SIMC of the arbitration commenced pursuant to an AMA Clause within 4 working days from the commencement of the arbitration, or within 4 working days from the agreement of the parties to refer their dispute to mediation under the AMA Protocol. SIAC will send to SIMC a copy of the notice of arbitration.

4. The Tribunal shall be constituted by SIAC in accordance with the Arbitration Rules and/or the parties' arbitration agreement.

5. The Tribunal shall, after the exchange of the Notice of Arbitration and Response to the Notice of Arbitration, stay the arbitration and inform the Registrar of SIAC that the case can be submitted for mediation at SIMC. The Registrar of SIAC will send the case file with all documents lodged by the parties to SIMC for mediation at SIMC.

   Upon SIMC's receipt of the case file, SIMC will inform the Registrar of SIAC of the commencement of mediation at SIMC (the "Mediation Commencement Date") pursuant to the SIMC Mediation Rules. All subsequent steps in the arbitration shall be stayed pending the outcome of mediation at SIMC.

6. The mediation conducted under the auspices of SIMC shall be completed within 8 weeks from the Mediation Commencement Date, unless, the Registrar of SIAC in consultation with the SIMC extends the time. For the purposes of calculating any time period in the arbitration proceeding, the time period will stop running at the Mediation Commencement Date and resume upon notification of the Registrar of SIAC to the Tribunal of the termination of the mediation proceeding.

7. At the termination of the 8-week period (unless the deadline is extended by the Registrar of SIAC) or in the event the dispute cannot be settled by mediation either partially or entirely at any time prior to the expiration of the 8-week period, SIMC shall promptly inform the Registrar of SIAC of the outcome of the mediation, if any.

8. In the event that the dispute has not been settled by mediation either partially or entirely, the Registrar of SIAC will inform the Tribunal that the arbitration proceeding shall resume. Upon the date of the Registrar's notification to the Tribunal, the arbitration proceeding in respect of the dispute or remaining part of the dispute (as the case may be) shall resume in accordance with the Arbitration Rules.

9. In the event of a settlement of the dispute by mediation between the parties, SIMC shall inform the Registrar of SIAC that a settlement has been reached. If the parties request the Tribunal to record their settlement in the form of a consent award, the parties or the Registrar of the SIAC shall refer the settlement agreement to the Tribunal and the Tribunal may render a consent award on the terms agreed to by the parties.

Financial Matters

10. Parties shall pay a non-refundable case filing fee as set out in Appendix B of the SIMC Mediation Rules to SIAC for all cases under this AMA Protocol.

11. Where a case is commenced pursuant to the AMA Clause and where parties have agreed to submit their dispute for resolution under the AMA Protocol before the commencement of arbitration proceedings, this filing fee is payable to SIAC upon the filing of the notice of arbitration. Otherwise, the portion of the filing fee remaining unpaid in respect of the mediation shall be payable to SIAC upon the submission of the case for mediation at SIMC.

12. Parties shall also pay to SIAC, upon request, an advance on the estimated costs of the arbitration ("Arbitration Advance") as well as administrative fees and expenses for the mediation ("Mediation Advance") in accordance with SIAC and SIMC's respective Schedule of Fees (collectively "the Deposits"). The quantum of the Deposits will be determined by the Registrar of SIAC in consultation with SIMC.

13. Where a case is commenced pursuant to the AMA Clause and where parties have agreed to submit their dispute for resolution under the AMA Protocol before the commencement of arbitration proceedings, the Mediation Advance shall be paid with the Arbitration Advance requested by SIAC. Otherwise, the Mediation Advance shall be paid upon the submission of the case for mediation at SIMC.

14. Without prejudice to the Arbitration Rules, any party is free to pay the Deposits of the other party, should the other party fail to pay its share. The Registrar of SIAC shall inform SIMC if the Deposits remain wholly or partially unpaid.

15. SIAC is authorised to make payment of the Mediation Advance to SIMC from the Deposits or the Arbitration Advance held by SIAC without further reference to the parties.

SIAC Restructuring and Insolvency Arbitration Protocol ("RIA Protocol")
(As of 26 August 2025)

Application of this Protocol

1. This Protocol shall apply to any dispute that parties have agreed to submit to arbitration under it where the dispute:

   (a) arises out of or in connection with any matters pertaining to a law relating to restructuring, adjustment of debt, or insolvency;

   (b) arises out of, in connection with, or in anticipation of, any insolvency proceedings, including on the recommendation of a court or an insolvency officeholder; or

   (c) does not arise in anticipation of or in relation to any insolvency proceedings.

2. For the purposes of this Protocol:

   (a) "insolvency proceedings" mean and include any judicial or administrative proceeding, including an interim proceeding, pursuant to a law relating to insolvency or adjustment of debt, in which proceeding the assets and affairs of a person or entity are subject to, or will be subject to, control or supervision by a court, for the purpose of reorganisation or liquidation;

   (b) "court" means a court, tribunal, or other adjudicative body, in any jurisdiction, for matters relating to restructuring, adjustment of debt, or insolvency;

   (c) "insolvency officeholder" means a person appointed under any law relating to restructuring, adjustment of debt, or insolvency, to administer, manage, or oversee any insolvency proceedings and includes, but is not limited to, liquidators, administrators, administrative receivers, trustees in bankruptcy, receivers, insolvency professionals or practitioners, supervisors of voluntary arrangements, judicial managers, resolution professionals, or any person performing an equivalent function and acting in a fiduciary or court-supervised capacity under the applicable law.

3. By agreeing to submit a dispute to arbitration under this Protocol, the parties agree that:

   (a) subject to the modifications set out in this Protocol and any specific directions of the Tribunal, the SIAC Rules for the time being in force shall apply, *mutatis mutandis*, to an arbitration conducted under this Protocol; and

   (b) where an arbitration is conducted in accordance with this Protocol, the rules and procedures set out in this Protocol shall apply and take precedence over any contrary provisions in the applicable SIAC Rules.

4. Unless otherwise stated in this Protocol, any term that has been defined in the applicable SIAC Rules that is used in this Protocol shall have the same meaning as under the applicable SIAC Rules.

Response to Notice of Arbitration

5. The Respondent shall file a Response to the Notice of Arbitration with the Registrar and send a copy of the Response to the Claimant within seven days from the date of commencement of the arbitration under this Protocol.

Seat of Arbitration and Governing Law of Arbitration Agreement

6. In any arbitration conducted under this Protocol, unless the parties agree otherwise or the Tribunal determines otherwise:

   (a) the seat of arbitration shall be Singapore; and

   (b) the law governing the agreement of the parties to submit disputes to arbitration under this Protocol shall be Singapore law.

Appointment of Arbitrators

7. A sole arbitrator shall be appointed in any arbitration under this Protocol unless the Registrar determines, after considering the views of the parties, that the complexity, the quantum involved, or other relevant circumstances of the dispute, warrants the appointment of three arbitrators.

8. In the event a sole arbitrator is to be appointed, the parties may jointly nominate the sole arbitrator. In the absence of such joint nomination being made within 14 days of the date of commencement of the arbitration under this Protocol or within the period otherwise agreed by the parties or set by the Registrar, or if at any time any party so requests, the President shall appoint the sole arbitrator.

9. In the event three arbitrators are to be appointed:

   (a) The Claimant shall nominate an arbitrator within seven days from the date of commencement of the arbitration under this Protocol or within the period of time otherwise agreed by the parties or set by the Registrar, and the Respondent shall nominate an arbitrator within seven days of the receipt of the Claimant's nomination of an arbitrator or within the period of time otherwise agreed by the parties or set by the Registrar.

   (b) If a party fails to make a nomination of an arbitrator within the timelines under Paragraph 9(a), the President shall appoint an arbitrator on its behalf.

   (c) The presiding arbitrator shall be appointed by the President, unless the parties have agreed upon another procedure for the nomination of the presiding arbitrator or if such agreed procedure does not result in a nomination of the presiding arbitrator within the period agreed by the parties or set by the Registrar.

10. Where there are more than two parties to the arbitration, and three arbitrators are to be appointed, the Claimant(s) shall jointly nominate an arbitrator and the Respondent(s) shall jointly nominate an arbitrator within 15 days from the date of commencement of the arbitration under this Protocol or within the period of time otherwise agreed by the parties or set by the Registrar. The third arbitrator, who shall be the presiding arbitrator, shall be appointed in accordance with Paragraph 9(c). In the absence of joint nominations from both the Claimant(s) and the Respondent(s) being made within 15 days of the date of commencement of the arbitration under this Protocol or within the period otherwise agreed by the parties or set by the Registrar, the President shall appoint all three arbitrators and shall designate one of them to be the presiding arbitrator.

11. Any arbitrator nominated or appointed under this Protocol may, but is not required to be, an arbitrator listed under the SIAC Specialist Panel for Restructuring and Insolvency Disputes.

12. Unless the parties agree otherwise, the Tribunal shall not appoint a Tribunal Secretary in an arbitration under this Protocol.

Challenge to Arbitrators

13. A party who wishes to challenge an arbitrator shall file a notice of challenge with the Registrar:

    (a) within three days from the date of receipt of the notice of appointment of the arbitrator who is being challenged; or

    (b) within three days from the date that the reasons for challenge of an arbitrator specified in the SIAC Rules became known or should have reasonably been known to that party.

14. If within three days after the date the notice of challenge is filed, all other parties agree to the challenge or the challenged arbitrator voluntarily withdraws from office, the SIAC Court may direct that a substitute arbitrator be appointed in accordance with this Protocol and the SIAC Rules. In neither case does this imply acceptance of the validity of the grounds for the challenge.

15. The procedures for challenge and replacement of an arbitrator in the applicable SIAC Rules shall apply, *mutatis mutandis*, to a challenge of an arbitrator under this Protocol, save that the SIAC Court may determine that no reasons are to be provided in a decision on the challenge.

Mediation

16. The Tribunal may, at the joint request of the parties, suspend the proceedings for a period of up to three weeks to allow the parties to resolve their dispute, in whole or in part, through mediation. The Tribunal may extend the period of suspension at the request of a party.

17. Subject to any applicable law, no member of the Tribunal may act as a mediator in respect of the dispute or any part thereof, unless agreed by all parties in writing.

18. Where the parties agree to attempt resolution of their dispute through mediation, if the dispute:

    (a) has not been settled by mediation, the Tribunal shall resume the arbitration proceedings in respect of the dispute or any remaining part of the dispute; or

    (b) has been settled by mediation, the parties may request the Tribunal to record their settlement in the form of a consent award on the terms agreed by the parties.

19. Where the Tribunal is requested to make a consent award on terms agreed by the parties, the Tribunal shall seek to ensure that the matters dealt with in the consent award are:

    (a) within the scope of the arbitration agreement and the Tribunal's jurisdiction; and

    (b) not contrary to any applicable law or otherwise contrary to public policy.

Conduct of Proceedings

20. Within seven days from the date of constitution of the Tribunal, the Tribunal shall conduct a case management conference with the parties to discuss:

    (a) the timetable for the conduct of the proceedings, including the determination of any interlocutory applications;

    (b) the parties' views on the joinder of any third party to the arbitration;

    (c) the parties' views on any issue that may be appropriate for preliminary determination;

    (d) any objections to the jurisdiction of the Tribunal or the validity, enforceability, or scope of the agreement to arbitrate; and

    (e) the potential for the settlement of all or part of the dispute, including through the adoption of amicable dispute resolution methods such as mediation.

21. The Tribunal shall have the power to conduct the proceedings in such manner as the Tribunal considers appropriate, taking into account the timelines under this Protocol.

22. In exercising its procedural discretion under this Protocol, the Tribunal may set a time limit on the expiry of which, the parties shall not be entitled to file any interlocutory applications without leave of the Tribunal.

23. The Registrar may extend or abridge any time limit under this Protocol.

Award

24. The final award shall be made as soon as practicable and, in any event, within six months from the date of constitution of the Tribunal, unless the parties agree otherwise or the Registrar extends the time for making such final award.

25. The Tribunal may, in consultation with the parties and the Registrar, order that the time limit for making the final award under Paragraph 24 shall no longer apply in the arbitration. Notwithstanding such an order by the Tribunal, the arbitration shall continue to be conducted by the same Tribunal that was constituted to conduct the arbitration.

26. Before making any award, the Tribunal shall submit such award in draft form to the Registrar and inform the parties of the date of submission. The Tribunal shall submit the draft award to the Registrar not later than 30 days from the date of submission of the last directed oral or written submission in respect of the proceedings to which the award pertains, unless the Registrar extends the time for such submission.

27. The Registrar may, as soon as practicable, suggest modifications as to the form of the draft award and, without affecting the Tribunal's liberty to decide the dispute, draw the Tribunal's attention to points of substance. No award shall be issued until it has been approved by the Registrar as to its form.

28. The Tribunal shall state the reasons upon which the award is based in summary form, unless the parties have agreed that no reasons are to be given.

General Provisions

29. Notwithstanding any provisions on confidentiality in the applicable SIAC Rules, a party may:

    (a) request the Tribunal to provide an additional and amended copy of any decision, ruling, order, or award that does not reveal any matter, including the identity of any party to the proceedings or any other information that any party to the proceedings reasonably wishes to remain confidential;

    (b) disclose such additional and amended copy of a decision, ruling, order, or award in any relevant insolvency proceedings; and

    (c) with the leave of the Tribunal, disclose the status and progress of any arbitration conducted under this Protocol, in any relevant insolvency proceedings.

30. The parties hereby agree that they shall not raise, and insofar as such waiver can be validly made, expressly waive, any objection to the arbitrability of any dispute, claim, or controversy submitted to arbitration under this Protocol, or any objection as to the scope of arbitrable issues or any argument that the dispute falls outside the scope of arbitration. The parties further agree that the Tribunal shall have the power to rule on its own jurisdiction, including any objections with respect to the existence, validity, applicability, or scope of the arbitration agreement, the arbitrability of any claim, and any objections as to whether a dispute is subject to arbitration under this agreement.

31. This Protocol and the applicable SIAC Rules shall apply as appropriate to any arbitration conducted under this Protocol, taking into account the nature and purpose of the proceedings. The Tribunal may decide the manner in which this Protocol and the SIAC Rules shall apply to any arbitration conducted under this Protocol.

SIAC Model Clauses
(Revised as of 9 December 2024)

1. SIAC Model Clause

We recommend that parties include the following arbitration agreement in their contracts:

> Any dispute arising out of or in connection with this contract, including any question regarding its existence, validity or termination, shall be referred to and finally resolved by arbitration administered by the Singapore International Arbitration Centre ("SIAC") in accordance with the Arbitration Rules of the Singapore International Arbitration Centre ("SIAC Rules") for the time being in force, which rules are deemed to be incorporated by reference in this clause.
>
> The seat of the arbitration shall be [Singapore].*
>
> The Tribunal shall consist of _____ arbitrator(s).^
>
> The language of the arbitration shall be _____.
>
> The law governing this arbitration agreement shall be _____. #
>
> [In respect of any court proceedings in Singapore commenced under the International Arbitration Act 1994 in relation to the arbitration, the parties agree (a) to commence such proceedings before the Singapore International Commercial Court ("the SICC"); and (b) in any event, that such proceedings shall be heard and adjudicated by the SICC.] **

Parties should also include an applicable law clause. The following language is recommended:

> APPLICABLE LAW
>
> This contract is governed by the laws of _____. ^^
>
> _____

* Parties should specify the seat of arbitration of their choice. If the parties wish to select an alternative seat to Singapore, please replace "[Singapore]" with the city and country of choice (e.g., "[City, Country]").

^ State an odd number. Either state one, or state three.

State the country or jurisdiction. We recommend that parties agree on the law governing the arbitration agreement. This law potentially governs matters including the formation, existence, enforceability, legality, scope, and validity of the arbitration agreement, and the arbitrability of disputes arising from it.

** Parties may wish to agree to the supervisory jurisdiction of the Singapore International Commercial Court (SICC) for international commercial arbitrations where Singapore is chosen as the seat of arbitration.

^^ State the country or jurisdiction.

2. SIAC UNCITRAL Rules Model Clause

Where parties intend for SIAC to administer an arbitration governed by the UNCITRAL Arbitration Rules, we recommend that they include the following arbitration agreement in their contracts:

> Any dispute, controversy or claim arising out of or relating to this contract, or the breach, termination or invalidity thereof, shall be settled by arbitration in accordance with the UNCITRAL Arbitration Rules for the time being in force.
>
> The arbitration shall be administered by the Singapore International Arbitration Centre ("SIAC") in accordance with its Practice Note on UNCITRAL cases.
>
> The appointing authority shall be the President or Vice-President of the SIAC Court of Arbitration.
>
> The seat of the arbitration shall be [Singapore]. *
>
> The number of arbitrators shall be _____. ^
>
> The language to be used in the arbitral proceedings shall be _____.
>
> The law governing this arbitration agreement shall be _____. #
>
> [The parties hereby waive their right to any form of recourse against an award to any court or other competent authority, insofar as such waiver can validly be made under the applicable law.] **
>
> [In respect of any court proceedings in Singapore commenced under the International Arbitration Act 1994 in relation to the arbitration, the parties agree (a) to commence such proceedings before the Singapore International Commercial Court ("the SICC"); and (b) in any event, that such proceedings shall be heard and adjudicated by the SICC.] ^^

_____

* Parties should specify the seat of arbitration of their choice. If the parties wish to select an alternative seat to Singapore, please replace "[Singapore]" with the city and country of choice (e.g., "[City, Country]").

^ State an odd number, such as one or three.

State the country or jurisdiction. We recommend that parties agree on the law governing the arbitration agreement. This law potentially governs matters including the formation, existence, enforceability, legality, scope, and validity of the arbitration agreement, and the arbitrability of disputes arising from it.

** If the parties wish to exclude recourse against the arbitral award that may be available under the applicable law, they may consider adding this provision to that effect, considering, however, that the effectiveness and conditions of such an exclusion depend on the applicable law.

^^ Parties may wish to agree to the supervisory jurisdiction of the Singapore International Commercial Court (SICC) for international commercial arbitrations where Singapore is chosen as the seat of arbitration.

3. SIAC Expedited Procedure Model Clause

Where parties intend for the application of the SIAC Expedited Procedure to an arbitration arising from their contract, we recommend that parties include the following arbitration agreement in their contract:

> Any dispute arising out of or in connection with this contract, including any question regarding its existence, validity or termination, shall be referred to and finally resolved by arbitration administered by the Singapore International Arbitration Centre ("SIAC") in accordance with the Arbitration Rules of the Singapore International Arbitration Centre ("SIAC Rules") for the time being in force, which rules are deemed to be incorporated by reference in this clause.
>
> The parties agree that any arbitration commenced pursuant to this clause shall be conducted in accordance with the Expedited Procedure under Rule 14.1 and Schedule 3 of the SIAC Rules.
>
> The seat of the arbitration shall be [Singapore].*
>
> The Tribunal shall consist of one arbitrator.
>
> The language of the arbitration shall be _____.
>
> The law governing this arbitration agreement shall be _____. ^
>
> [In respect of any court proceedings in Singapore commenced under the International Arbitration Act 1994 in relation to the arbitration, the parties agree (a) to commence such proceedings before the Singapore International Commercial Court ("the SICC"); and (b) in any event, that such proceedings shall be heard and adjudicated by the SICC.] #

Parties should also include an applicable law clause. The following language is recommended:

> APPLICABLE LAW
>
> This contract is governed by the laws of _____. **

_____

* Parties should specify the seat of arbitration of their choice. If the parties wish to select an alternative seat to Singapore, please replace "[Singapore]" with the city and country of choice (e.g., "[City, Country]").

^ State the country or jurisdiction. We recommend that parties agree on the law governing the arbitration agreement. This law potentially governs matters including the formation, existence, enforceability, legality, scope, and validity of the arbitration agreement, and the arbitrability of disputes arising from it.

Parties may wish to agree to the supervisory jurisdiction of the Singapore International Commercial Court (SICC) for international commercial arbitrations where Singapore is chosen as the seat of arbitration.

** State the country or jurisdiction.

4. SIAC Streamlined Procedure Model Clause

Where parties intend for the application of the SIAC Streamlined Procedure to an arbitration arising from their contract, we recommend that parties include the following arbitration agreement in their contract:

> Any dispute arising out of or in connection with this contract, including any question regarding its existence, validity or termination, shall be referred to and finally resolved by arbitration administered by the Singapore International Arbitration Centre ("SIAC") in accordance with the Arbitration Rules of the Singapore International Arbitration Centre ("SIAC Rules") for the time being in force, which rules are deemed to be incorporated by reference in this clause.
>
> The parties agree that any arbitration commenced pursuant to this clause shall be conducted in accordance with the Streamlined Procedure under Rule 13.1 and Schedule 2 of the SIAC Rules.
>
> The seat of the arbitration shall be [Singapore].*
>
> The Tribunal shall consist of one arbitrator.
>
> The language of the arbitration shall be _____.
>
> The law governing this arbitration agreement shall be _____. ^
>
> [In respect of any court proceedings in Singapore commenced under the International Arbitration Act 1994 in relation to the arbitration, the parties agree (a) to commence such proceedings before the Singapore International Commercial Court ("the SICC"); and (b) in any event, that such proceedings shall be heard and adjudicated by the SICC.] #

Parties should also include an applicable law clause. The following language is recommended:

> APPLICABLE LAW
>
> This contract is governed by the laws of _____. **

_____

* Parties should specify the seat of arbitration of their choice. If the parties wish to select an alternative seat to Singapore, please replace "[Singapore]" with the city and country of choice (e.g., "[City, Country]").

^ State the country or jurisdiction. We recommend that parties agree on the law governing the arbitration agreement. This law potentially governs matters including the formation, existence, enforceability, legality, scope, and validity of the arbitration agreement, and the arbitrability of disputes arising from it.

Parties may wish to agree to the supervisory jurisdiction of the Singapore International Commercial Court (SICC) for international commercial arbitrations where Singapore is chosen as the seat of arbitration.

** State the country or jurisdiction.

5. SIAC-SIMC Arb-Med-Arb Model Clause ("Arb-Med-Arb Clause")

Arb-Med-Arb is a process where a dispute is first referred to arbitration before mediation is attempted. If parties are able to settle their dispute through mediation, their mediated settlement may be recorded as a consent award. The consent award is generally accepted as an arbitral award, and, subject to any local legislation and/or requirements, is generally enforceable in over 170 countries under the New York Convention. If parties are unable to settle their dispute through mediation, they may continue with the arbitration proceedings.

Parties wishing to utilise this tiered dispute resolution mechanism as administered by SIAC and the Singapore International Mediation Centre ("SIMC"), may consider incorporating the following Arb-Med-Arb Clause in their contracts:

> Any dispute arising out of or in connection with this contract, including any question regarding its existence, validity or termination, shall be referred to and finally resolved by arbitration administered by the Singapore International Arbitration Centre ("SIAC") in accordance with the Arbitration Rules of the Singapore International Arbitration Centre ("SIAC Rules") for the time being in force, which rules are deemed to be incorporated by reference in this clause.
>
> The seat of the arbitration shall be [Singapore]. *
>
> The Tribunal shall consist of _____ arbitrator(s). ^
>
> The language of the arbitration shall be _____.
>
> The law governing this arbitration agreement shall be _____. #
>
> The parties further agree that following the commencement of arbitration, they will attempt in good faith to resolve the Dispute through mediation at the Singapore International Mediation Centre ("SIMC"), in accordance with the SIAC-SIMC Arb-Med-Arb Protocol for the time being in force. Any settlement reached in the course of the mediation shall be referred to the arbitral tribunal appointed by SIAC and may be made a consent award on agreed terms.

[In respect of any court proceedings in Singapore commenced under the International Arbitration Act 1994 in relation to the arbitration, the parties agree (a) to commence such proceedings before the Singapore International Commercial Court ("the SICC"); and (b) in any event, that such proceedings shall be heard and adjudicated by the SICC.] **

_____

* Parties should specify the seat of arbitration of their choice. If the parties wish to select an alternative seat to Singapore, please replace "[Singapore]" with the city and country of choice (e.g., "[City, Country]").

^ State an odd number. Either state one, or state three.

State the country or jurisdiction. We recommend that parties agree on the law governing the arbitration agreement. This law potentially governs matters including the formation, existence, enforceability, legality, scope, and validity of the arbitration agreement, and the arbitrability of disputes arising from it.

** Parties may wish to agree to the supervisory jurisdiction of the Singapore International Commercial Court (SICC) for international commercial arbitrations where Singapore is chosen as the seat of arbitration.

6. SIAC FedArb Model Clause

Any dispute arising out of or in connection with this contract, including any question regarding its existence, validity or termination, shall be referred to and finally resolved by arbitration administered by the Singapore International Arbitration Centre ("SIAC") in accordance with the Arbitration Rules of the Singapore International Arbitration Centre ("SIAC Rules") for the time being in force, which rules are deemed to be incorporated by reference in this clause.

The seat of the arbitration shall be Palo Alto, California.

The Tribunal shall consist of _____* arbitrator(s). The arbitrator(s) shall be selected from the FedArb IP Panel of Arbitrators and/or SIAC IP Panel of Arbitrators.

The language of the arbitration shall be _____.

The law governing this arbitration agreement shall be _____. ^

This contract is governed by the laws of _____#

_____

* State an odd number. Either state one, or state three.

^ State the country or jurisdiction. We recommend that parties agree on the law governing the arbitration agreement. This law potentially governs matters including the formation, existence, enforceability, legality, scope, and validity of the arbitration agreement, and the arbitrability of disputes arising from it.

State the country or jurisdiction.

7. SIAC RIA Protocol Model Clauses
(As of 26 August 2025)

a. Model Clause for reference of disputes to arbitration under the SIAC RIA Protocol where the disputes have already arisen

For disputes that have arisen which parties wish to refer to arbitration conducted in accordance with the SIAC Rules and the SIAC RIA Protocol, we recommend that parties adopt and amend the following language for their agreement as an arbitration agreement. Parties should include a definition of the term 'disputes' to include all issues or claims that have arisen which are sought to be referred to arbitration. A proposed definition is included here.

"Disputes" shall mean any and all disputes, claims, controversies or differences of any kind whatsoever that arise out of or relate to [*describe the nature of issues or claims that are sought to be referred to arbitration*].

The Disputes including any question regarding the existence, validity or termination of this agreement, shall be referred to and finally resolved by arbitration administered by the Singapore International Arbitration Centre ("SIAC") in accordance with the Arbitration Rules of the Singapore International Arbitration Centre ("SIAC Rules"), for the time being in force, which rules are deemed to be incorporated by reference in this clause. The arbitration shall be conducted in accordance with the SIAC Restructuring and Insolvency Arbitration Protocol ("SIAC RIA Protocol").

The seat of the arbitration shall be [Singapore].*

The Tribunal shall consist of _____ arbitrator(s). ^

The language of the arbitration shall be _____.

The law governing this arbitration agreement shall be [Singapore].#

[In respect of any court proceedings in Singapore commenced under the International Arbitration Act 1994 in relation to the arbitration, the parties agree (a) to commence such proceedings before the Singapore International Commercial Court ("the SICC"); and (b) in any event, that such proceedings shall be heard and adjudicated by the SICC.] **

Note: The SIAC RIA Protocol provides that, unless the parties agree otherwise or the tribunal determines otherwise, Singapore shall be the seat of the arbitration, and Singapore law shall govern the agreement of the parties to submit disputes to arbitration under the SIAC RIA Protocol. Parties are free to agree on a different seat of arbitration or a different law to govern the agreement to arbitrate disputes under the SIAC RIA Protocol.

* If parties wish to select an alternative seat to Singapore, please replace "[Singapore]" with the city and country of choice (e.g., "[City, Country]").

^ State an odd number. Either state one, or state three.

If parties wish to select an alternative law to govern the agreement to arbitrate, please state the country or jurisdiction. We recommend that parties agree on the law governing the arbitration agreement. This law potentially governs matters including the formation, existence, enforceability, legality, scope, and validity of the arbitration agreement, and the arbitrability of disputes arising from it.

** Parties may wish to agree to the supervisory jurisdiction of the Singapore International Commercial Court (SICC) for international commercial arbitrations where Singapore is chosen as the seat of arbitration.

b. Model Clause for reference of disputes to arbitration under the SIAC RIA Protocol where such disputes may arise in the future

For any disputes that may arise in the future to be referred to arbitration conducted in accordance with the SIAC Rules and the SIAC RIA Protocol, we recommend that parties include the following arbitration agreement in their contracts:

Any dispute arising out of or in connection with this contract, including any question regarding its existence, validity or termination, shall be referred to and finally resolved by arbitration administered by the Singapore International Arbitration Centre ("SIAC") in accordance with the Arbitration Rules of the Singapore International Arbitration Centre ("SIAC Rules"), for the time being in force, which rules are deemed to be incorporated by reference in this clause. The arbitration shall be conducted in accordance with the SIAC Restructuring and Insolvency Arbitration Protocol ("SIAC RIA Protocol").

The seat of the arbitration shall be [Singapore].*

The Tribunal shall consist of _____ arbitrator(s).^

The language of the arbitration shall be _____.

The law governing this arbitration agreement shall be [Singapore].#

[In respect of any court proceedings in Singapore commenced under the International Arbitration Act 1994 in relation to the arbitration, the parties agree (a) to commence such proceedings before the Singapore International Commercial Court ("the SICC"); and (b) in any event, that such proceedings shall be heard and adjudicated by the SICC.] **

Parties should also include an applicable law clause. The following language is recommended:

APPLICABLE LAW

This contract is governed by the laws of [Singapore].^^

_____

Note: The SIAC RIA Protocol provides that, unless the parties agree otherwise or the tribunal determines otherwise, Singapore shall be the seat of the arbitration, and Singapore law shall govern the agreement of the parties to submit disputes to arbitration under the SIAC RIA Protocol. Parties are free to agree on a different seat of arbitration or a different law to govern the agreement to arbitrate disputes under the SIAC RIA Protocol.

* If parties wish to select an alternative seat to Singapore, please replace "[Singapore]" with the city and country of choice (e.g., "[City, Country]").

^ State an odd number. Either state one, or state three.

If parties wish to select an alternative law to govern the agreement to arbitrate, please state the country or jurisdiction. We recommend that parties agree on the law governing the arbitration agreement. This law potentially governs matters including the formation, existence, enforceability, legality, scope, and validity of the arbitration agreement, and the arbitrability of disputes arising from it.

** Parties may wish to agree to the supervisory jurisdiction of the Singapore International Commercial Court (SICC) for international commercial arbitrations where Singapore is chosen as the seat of arbitration.

^^ State the country or jurisdiction.

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